



Western Australia

Constitution Acts Amendment Act 1899

Compare between:

[01 Jul 2015, 19-o0-04] and [19 Oct 2015, 19-p0-01]

Western Australia

Constitution Acts Amendment Act 1899

An Act to amend the *Constitution Act 1889*, and to amend and consolidate the Acts amending the same.

Preamble

Whereas by the *Constitution Act 1889*, it is provided that the Legislature of Western Australia shall have full power and authority from time to time to repeal or alter any of the provisions of the said Act: And whereas it is expedient to amend the said Act and to amend and consolidate the Acts amending the same: Be it therefore enacted by the Queen's Most Excellent Majesty, by and with the advice and consent of the Legislative Council and Legislative Assembly of Western Australia, in this present Parliament assembled, and by the authority of the same, as follows: —

Part IA — Preliminary

[Heading inserted by No. 19 of 2010 s. 43(2).]

1. Short title

This Act may be cited as the *Constitution Acts Amendment Act 1899*¹.

2. Repeal

The enactments mentioned in the First Schedule hereto are thereby repealed to the extent therein stated.

3. Terms used

For the purposes of this Act —

Her Majesty means, when not repugnant to the context, Her Majesty, her heirs and successors.

Governor in Council means the Governor acting with the advice of the Executive Council.

Minister means the Minister charged with the execution of this Act.

Treasurer means the Treasurer of the State for the time being.

Person means an individual of either sex.

[Section 3 amended by No. 7 of 1920 s. 2; No. 46 of 1963 s. 8; No. 59 of 1978 s. 9.]

[4. Deleted by No. 10 of 1998 s. 76.]

Part I — Legislature

Division 1 — Legislative Council

[Heading inserted by No. 19 of 2010 s. 44(2).]

5. Constitution of Legislative Council

The Legislative Council shall consist of 36 elected members who shall be returned and sit for electoral regions.

[Section 5 inserted by No. 40 of 1987 s. 6; amended by No. 1 of 2005 s. 7(2).]

[6. Deleted by No. 1 of 2005 s. 7(3).]

[7. Deleted by No. 64 of 2006 s. 4.]

8. Retirement of members periodically

(1) In this section —

general election means a general election for the Legislative Council;

member means a member of the Legislative Council.

(2) The seat of a member elected at a general election shall become vacant at the expiration of the period of 4 years beginning on 22 May next following the day of his election as member.

(3) A member elected at a general election shall not sit or vote before 22 May next following the day of his election as member.

(4) Where an election held as part of a general election fails wholly or partially or is declared to be absolutely void —

(a) the seat of a member elected at an election held by reason of that failure or declaration shall become vacant at the expiration of the period of 4 years beginning on 22 May next following that general election; and

(b) if a member elected at an election held by reason of that failure or declaration is so elected before 22 May next following that general election, that member shall not sit or vote before that 22 May.

- (5) Subsections (2) and (4)(a) do not affect the operation of any enactment under which a member may cease to be a member, or the seat of a member may become vacant, otherwise than by effluxion of time.

[Section 8 inserted by No. 40 of 1987 s. 8; amended by No. 36 of 2000 s. 23; No. 49 of 2011 s. 12.]

[8A. Omitted under the Reprints Act 1984 s. 7(4)(e).]

[8B. Deleted by No. 40 of 1987 s. 10.]

9. Resignation of members

Any member of the Legislative Council may resign his seat therein, by writing under his hand addressed to the President, or if there be no President, or if the President is absent from the State, to the Governor, and upon the receipt of such resignation by the President or the Governor, as the case may be, the seat of such member shall become vacant.

[Section 9 amended by No. 46 of 1963 s. 8.]

10. Tenure of seat by member filling vacancy

- (1) A member of the Legislative Council elected to fill any vacancy arising otherwise than by effluxion of time shall hold the seat during the unexpired portion of the term for which the previous member would have been entitled to hold it, and no longer.
- (2) Subsection (1) does not affect the operation of any enactment under which a member may cease to be a member, or the seat of a member may become vacant, otherwise than by effluxion of time.
- (3) The provisions of this Act and the *Electoral Act 1907* as to the occurrence and filling of vacancies in the seats of members of

the Council extend, with any appropriate modifications, to cases where —

- (a) a person has been elected as a member but the term of office for which the person was elected has not begun; or
- (b) the election of a person as a member is void and the term of office for which the person would have been elected, if the election had not been void, would have begun on 22 May next following the election.

[Section 10 amended by No. 40 of 1987 s. 11; No. 36 of 2000 s. 56.]

11. Election of President

Whenever the office of President of the Legislative Council becomes vacant, the Council at their first meeting thereafter shall elect one of their members to be President, and the President so elected shall preside at all meetings of the Council: Provided that pending such first meeting the Chairman of Committees shall fill the office and perform the duties of the President, subject, however, to section 13.

[Section 11 amended by No. 32 of 1954 s. 2.]

12. Absence of President provided for

In case of the absence of the President upon leave of absence granted to him by the Legislative Council, or by reason of illness or other unavoidable cause, the Chairman of Committees shall fill the office and perform the duties of the President during such absence.

[Section 12 amended by No. 32 of 1954 s. 3.]

13. President to hold office in certain cases until meeting of Parliament

The member of the Legislative Council holding office as the President thereof who shall vacate his seat by periodical

retirement when the Council is not in session, shall continue in office and be deemed to be the President of the said Council until the next meeting of Parliament, unless he shall not be re-elected a member of the said Council; but nothing in this section shall enable a President hereby continued in office to preside at any meeting of the said Council.

14. Quorum — division, casting vote

The presence of at least one-third of the members of the Legislative Council, exclusive of the President, shall be necessary to constitute a quorum for the despatch of business; and all questions which shall arise in the Legislative Council shall be decided by a majority of votes of the members present, other than the President, and when the votes are equal the President shall have the casting vote:

Provided always, that if the whole number of members constituting the Legislative Council shall not be exactly divisible by 3, the quorum of the Legislative Council shall consist of such whole number as is next greater than one-third of the members of the Legislative Council.

[15. Deleted by No. 64 of 2006 s. 5.]

[16. Deleted by No. 72 of 1963 s. 9.]

[17. Deleted by No. 72 of 1963 s. 10.]

Division 2 — Legislative Assembly

[Heading inserted by No. 19 of 2010 s. 44(2).]

18. Constitution of Legislative Assembly

The Legislative Assembly shall consist of 59 elected members who shall be returned and sit for electoral districts.

[Section 18 inserted by No. 1 of 2005 s. 7(4); amended by No. 2 of 2005 s. 3.]

[19. Deleted by No. 1 of 2005 s. 7(4).]

[20. Deleted by No. 64 of 2006 s. 6.]

21. Duration of Assembly

- (1) Every Legislative Assembly shall exist and continue for 4 years from the day of the first meeting thereof and no longer; subject, nevertheless, to being sooner prorogued or dissolved by the Governor.

Provided that, subject as aforesaid —

- (a) whenever any Legislative Assembly would expire by the effluxion of time between the last day of August of any year and the first day of February next thereafter, such Legislative Assembly shall continue up to and including the day next preceding such first day of February and no longer; and
- (b) whenever the Legislative Assembly would expire by effluxion of time between the last day of January and the first day of September of any year, such Legislative Assembly shall cease and determine on the last day of January of that year.
- (2) Notwithstanding subsection (1) the Legislative Assembly in existence at the commencement of the *Acts Amendment (Electoral Reform) Act 1987* shall, subject to section 3 of the *Constitution Act 1889*, cease and determine on 31 January 1989.
- [Section 21 amended by No. 48 of 1919 s. 2; No. 40 of 1987 s. 12.]

22. Absence of Speaker provided for

In case of the absence of the Speaker upon leave of absence granted to him by the Legislative Assembly, or by reason of illness, or other unavoidable cause, the Chairman of Committees shall perform the duties and exercise the authority of Speaker in relation to all proceedings of the House as Deputy

Speaker; and, in the absence of the Chairman of Committees, the Assembly shall thereupon elect some other member to fill the office and perform the duties of the Speaker during such absence.

23. Speaker to hold office till meeting of new Parliament unless not re-elected

In case of any dissolution of Parliament the Speaker of the Legislative Assembly at the time of such dissolution shall continue in office and shall be deemed to be the Speaker of the said Assembly until the first meeting of the new Parliament, unless he shall not be re-elected a member of the said Assembly; but nothing in this section shall enable a Speaker hereby continued in office to preside at any meeting of the said Assembly.

24. Quorum — division, casting vote

The presence of at least one-third of the members of the Legislative Assembly, exclusive of the Speaker, shall be necessary to constitute a quorum for the despatch of business; and all questions which shall arise in the Legislative Assembly shall be decided by a majority of votes of the members present, other than the Speaker, and when the votes shall be equal the Speaker shall have the casting vote: Provided always, that if the whole number of members constituting the Legislative Assembly shall not be exactly divisible by 3, the quorum of the Legislative Assembly shall consist of such whole number as is next greater than one-third of the members of the Legislative Assembly.

25. Resignation of members

Any member of the Legislative Assembly may resign his seat therein, by writing under his hand, addressed to the Speaker, or if there be no Speaker, or if the Speaker is absent from the State, to the Governor, and upon the receipt of such resignation by the

Speaker or the Governor, as the case may be, the seat of such member shall become vacant.

[Section 25 amended by No. 46 of 1963 s. 8.]

[26-28. Deleted by No. 27 of 1907 s. 211.]

Division 3 — General

[Heading inserted by No. 19 of 2010 s. 44(2).]

[29, 30. Deleted by No. 27 of 1907 s. 211.]

31. Terms used

(1) In this Division —

disqualified for membership of the Legislature means disqualified for membership of the Legislative Council and for membership of the Legislative Assembly;

member in relation to a commission, council, board, committee, authority, trust or other body means —

(a) any member of the body whether known as a member, commissioner, councillor, trustee, director or by any other title;

(b) any deputy, alternate or acting member of the body, and includes a person holding the office of chairman or president or any other office on the body;

member of the Legislature means a member of the Legislative Council or the Legislative Assembly.

(2) In this Division a reference to the holding of any office or place is a reference to the holding of that office or place in a permanent, temporary or acting capacity on a full-time, part-time or casual basis.

[Section 31 inserted by No. 78 of 1984 s. 8; amended by No. 24 of 2000 s. 9; No. 19 of 2010 s. 51.]

32. Disqualification by reason of bankruptcy or convictions

- (1) A person is disqualified for membership of the Legislature if he —
- (a) be an undischarged bankrupt, or a debtor against whose estate there is a subsisting receiving order in bankruptcy; or
 - (b) has been convicted on indictment of an offence for which the indictable penalty was or included —
 - (i) imprisonment for life; or
 - (ii) imprisonment for more than 5 years.

- (2) In subsection (1)(b) —

indictable penalty means the penalty that such a law specified for the offence in the event of a person being convicted of it on indictment; and

offence means an offence against a law of this State, the Commonwealth, another State or a Territory.

[Section 32 (formerly section 31) amended by No. 111 of 1975 s. 2; renumbered as 32 and amended by No. 78 of 1984 s. 9; No. 70 of 2004 s. 81(1)-(3).]

33. Holders of offices or places not disqualified except under s. 34 to 42

Except as provided by the succeeding sections of this Part or the *Electoral Act 1907* section 149A(2) —

- (a) the election of a person as a member of the Legislature shall not be rendered void or affected in any other way;
- (b) the seat of a person as a member of the Legislature shall not become vacant,

by reason of his holding any office or place of profit from or under the Crown or any other office or place.

[Section 33 inserted by No. 78 of 1984 s. 10; amended by No. 64 of 2006 s. 7.]

34. Disqualification of certain office-holders and members of Parliament

- (1) Subject to this Act a person is disqualified for membership of the Legislature if he —
- (a) holds any office mentioned in Part 1 of Schedule V; or
 - (b) is a member of the Parliament of the Commonwealth or the legislature of a Territory or another State of the Commonwealth.
- (2) A member of either House of the Legislature is disqualified for membership of the other House.

[Section 34 inserted by No. 78 of 1984 s. 10.]

[35. Deleted by No. 64 of 2006 s. 8.]

36. Certain offices and places must be vacated before member can take seat

- (1) Subject to subsections (2) and (8), this section applies to a person who —
- (a) holds an office or place in the service of the Crown in right of the Commonwealth or another State of the Commonwealth or in the service of the government of, or any department or agency of the government of, the Commonwealth or a Territory or another State of the Commonwealth; or
 - (b) holds an office as a member of any commission, council, board, committee, authority, trust or other body, and was appointed as such a member by the Crown in right of the Commonwealth or another State of the Commonwealth, or by the government of, or any department or agency of the government of, the Commonwealth or a Territory or another State of the Commonwealth.
- (2) Subject to subsection (4), the Governor may, by Order in Council, exempt any office or place from the operation of this section and whilst that office or place remains so exempted this

section shall not apply to a person by reason of his holding that office or place.

- (3) Subject to subsection (4), the Governor may, by subsequent Order in Council, amend an Order made under subsection (2) or revoke the Order either absolutely or for the purpose of substituting another Order.
- (4) An Order in Council shall be made under this section if and only if the making of the Order has been recommended by resolution passed by both Houses of the Legislature.
- (5) Subject to subsection (6), an Order in Council made under this section shall take and have effect on and from the day on which it is published in the *Government Gazette*.
- (6) Where, by reason of an Order in Council made under subsection (3), an office or place previously exempted from the operation of this section will no longer be so exempted, that Order shall take and have effect at and from the expiration of 30 days from the day on which it is published in the *Government Gazette*.
- (7) The Clerk of the Parliaments shall keep in his custody a copy of every Order in Council made under this section.
- (8) This section does not apply to a person by reason of his being a member of the Citizen Forces or the Reserve Forces within the meaning of the *Defence Act 1903* of the Parliament of the Commonwealth.
- (9) If any person to whom this section applies is elected as a member of the Legislative Council at a general election, his seat shall become vacant on 22 May next following the election if he has not, before that date, resigned from or otherwise ceased to hold the office or place by reason of which this section applies to him.
- (10) If any person to whom this section applies is elected as a member of the Legislature otherwise than as referred to in subsection (9) —

- (a) he shall not take the oath, or make the affirmation, pursuant to section 22 of the *Constitution Act 1889* until he has resigned from or otherwise ceased to hold the office or place by reason of which this section applies to him; and
- (b) his seat shall become vacant at the expiration of 21 days after the date on which he is declared to be elected if he has not, before the expiration of that period, resigned from or otherwise ceased to hold the office or place by reason of which this section applies to him.

[Section 36 inserted by No. 78 of 1984 s. 10.]

37. Office or place vacated in certain cases

- (1) Subject to subsection (2), this section applies to a person who —
 - (a) holds any office or place mentioned in Part 2 of Schedule V not being an office also mentioned in Part 1 of Schedule V; or
 - (b) is a member of any commission, council, board, committee, authority, trust or other body mentioned in Part 3 of Schedule V.
- (2) This section does not apply to a person by reason of his being the holder of any office or place, or a member of any body, *ex officio* as the holder of any of the principal executive offices of the Government liable to be vacated on political grounds.
- (3) If any person to whom this section applies is declared to be elected as a member of the Legislature, he shall, upon and by virtue of being so declared, vacate the office or place by reason of which this section applies to him.

[Section 37 inserted by No. 78 of 1984 s. 10.]

38. Seats in Parliament vacated in certain cases

Subject to any resolution passed by the Legislature under section 39, if any member of the Legislature, after his election —

- (a) ceases to be qualified under the *Electoral Act 1907* section 76A to be elected as a member of the Legislature; or
- (b) becomes disqualified for membership of the Legislature by section 32 or section 34; or
- (c) becomes a person to whom section 36 or section 37 applies; or
- (d) takes the benefit, whether by entering into a personal insolvency agreement or otherwise, of any law relating to bankrupt or insolvent debtors; or
- (e) becomes of unsound mind; or
- (f) takes any oath or makes any declaration or acknowledgment of allegiance, obedience, or adherence, to any foreign Prince or Power, or does, concurs in, or adopts any Act whereby he may become a subject or citizen of any foreign State or Power, or whereby he may become entitled to the rights, privileges, or immunities of a subject or citizen of any foreign State or Power; or
- (g) fails to give his attendance in the House of which he is a member for one entire session thereof without the permission of the House entered upon its journals,

his seat shall thereupon become vacant.

[Section 38 amended by No. 4 of 1947 s. 2 (as amended by No. 46 of 1963 s. 10); No. 12 of 1948 s. 3 (as amended by No. 46 of 1963 s. 10); No. 111 of 1969 s. 2; No. 15 of 1975 s. 2; No. 78 of 1984 s. 11; No. 64 of 2006 s. 9; No. 18 of 2009 s. 20.]

39. Provision for relief

- (1) This section applies to any case where a person has, or it is alleged that a person has, at any time (in this section called the *material time*) become the holder of an office or place —
 - (a) specified in Part 1 or 2 of Schedule V; or
 - (b) as a member of any commission, council, board, committee, authority, trust or other body specified in Part 3 of Schedule V; or
 - (c) referred to in section 36(1),
 and, at the material time, that person was a member of the Legislature.
- (2) If, in a case to which this section applies, it appears to the Legislature that the person concerned has, since the material time, resigned from or otherwise ceased to hold the office or place in question, and that it is otherwise proper so to do, the Legislature may, by resolution passed by both Houses, direct that his becoming the holder of that office or place at the material time shall be disregarded for the purposes of section 38 and the resolution shall have effect according to its tenor.
- (3) A resolution may be made under subsection (2), and a resolution made under that subsection shall have effect, notwithstanding that proceedings may have been commenced in the Supreme Court under section 41 and notwithstanding any declaration made by the Supreme Court under that section.
- (4) The provisions of sections 67(2) and (3) and 156B(2) and (3) of the *Electoral Act 1907* do not apply to or in relation to any vacancy occurring by operation of section 38 in a case to which this section applies.

[Section 39 inserted by No. 78 of 1984 s. 12; amended by No. 40 of 1987 s. 13.]

[39A-39C. Deleted by No. 78 of 1984 s. 12.]

40. Presence of unqualified persons not to invalidate proceedings

The proceedings of the Legislative Council or Legislative Assembly shall not be invalidated by reason of the presence in that House of —

- (a) any person not qualified under the *Electoral Act 1907* section 76A to be elected as a member of that House; or
- (b) any person disqualified by section 32 or section 34 for membership of that House; or
- (c) any person whose seat as a member of that House has become vacant by operation of section 36 or section 38.

[Section 40 inserted by No. 78 of 1984 s. 12; amended by No. 64 of 2006 s. 10.]

41. Jurisdiction of Court of Appeal

- (1) Any person entitled to vote for the election of a member of the Legislative Assembly at a general election may apply to the Court of Appeal, in accordance with Rules of Court, for a declaration as to whether or not —
 - (a) by operation of section 35 the election of that person or another person as a member of the Legislature is void; or
 - (b) by operation of section 36 or section 38 the seat of that person or another person as a member of the Legislature has become vacant; or
 - (c) by operation of section 37 that person or another person has vacated an office or place.
- (2) Upon any application made under subsection (1) by a person other than the person in respect of whom a declaration is sought, the person in respect of whom a declaration is sought shall be the respondent; and the applicant shall give such security for the costs of the proceedings not exceeding \$500 as the Court of Appeal may direct.

- (3) In hearing and determining an application under this section the Court of Appeal shall give effect to any resolution made under section 39(2) in respect of the person in respect of whom a declaration is sought.

[Section 41 inserted by No. 78 of 1984 s. 12; amended by No. 45 of 2004 s. 37.]

[41A. Deleted by No. 78 of 1984 s. 12.]

42. Power to amend Schedule V

- (1) Subject to subsection (2), the Governor may, by Order in Council, amend Schedule V.
- (2) An Order in Council shall be made under this section if and only if the making of that Order has been recommended by resolution passed by both Houses of the Legislature.
- (3) An Order in Council made under this section shall take and have effect —
- (a) in the case of an Order adding an office to Part 1 of Schedule V, or adding an office or place to Part 2 of Schedule V or adding a commission, council, board, committee, authority, trust or other body to Part 3 of Schedule V — at and from the expiration of 30 days from the day on which the Order is published in the *Government Gazette*; or
 - (b) in the case of any other Order — on and from the day on which the Order is published in the *Government Gazette*.
- (4) The Clerk of the Parliaments shall keep in his custody a copy of every Order in Council made under this section.

[Section 42 inserted by No. 78 of 1984 s. 12.]

Part II — Executive

43. Principal executive offices

- (1) There may be 17 principal executive offices of the Government liable to be vacated on political grounds, and no more.
- (2) The offices shall be such 17 offices as shall be designated and declared by the Governor in Council, from time to time, to be the 17 principal executive offices of the Government for the purposes of this Act.
- (3) One at least of such executive offices shall always be held by a member of the Legislative Council.
- (4) Before a person who accepts such an executive office performs any function of the office, he is to take before the Governor, or some person authorised for the purpose by the Governor, the oath or affirmation set out in Division 1 of Schedule VI.

[Section 43 amended by No. 25 of 1927 s. 2; No. 2 of 1950 s. 2; No. 2 of 1965 s. 3; No. 86 of 1975 s. 3; No. 5 of 1980 s. 3; No. 10 of 1986 s. 3; No. 24 of 2005 s. 9.]

44. No person to draw salaries for 2 offices

If any person accepts any 2 or more of the offices liable to be vacated on political grounds, it shall not be competent for him to receive the salary of more than one office.

44A. Parliamentary Secretaries

- (1) The Governor in Council may —
 - (a) appoint a person who is a member of the Legislature to be the Parliamentary Secretary to a Minister, that is to the holder of a principal executive office referred to in section 43; and
 - (b) at any time revoke such an appointment.

- (2) An office of Parliamentary Secretary under this section is not one to which section 43 applies but is liable to be vacated on political grounds in the same manner as a principal executive office referred to in that section.
- (3) The functions of a Parliamentary Secretary appointed under this section are such as the Governor in Council may specify in the instrument of appointment.
- (4) A Parliamentary Secretary appointed under this section shall be paid an allowance or allowances under subsection (5) but otherwise shall not receive any remuneration in respect of that office.
- (5) The allowances referred to in subsection (4) are —
 - (a) an allowance in respect of holding the office of Parliamentary Secretary; and
 - (b) an allowance for and in respect of expenses necessarily or reasonably incurred in connection with the office of Parliamentary Secretary,

determined under the *Salaries and Allowances Act 1975* section 6.

- (6) Before a person who is appointed to be a Parliamentary Secretary performs any function of the office, he is to take before the Governor, or some person authorised for the purpose by the Governor, the oath or affirmation set out in Division 1 of Schedule VI.

[Section 44A inserted by No. 38 of 1990 s. 4; amended by No. 24 of 2005 s. 10; No. 56 of 2006 s. 4.]

45. Oath of office for members of Executive Council

The form of the oath or affirmation of office for a person who has been appointed to be a member of the Executive Council is that set out in Division 2 of Schedule VI.

[Section 45 inserted by No. 24 of 2005 s. 11.]

Part III — Miscellaneous

46. Powers of the 2 Houses in respect of legislation

- (1) Bills appropriating revenue or moneys, or imposing taxation, shall not originate in the Legislative Council; but a Bill shall not be taken to appropriate revenue or moneys, or to impose taxation, by reason only of its containing provisions for the imposition or appropriation of fines or other pecuniary penalties, or for the demand of payment or appropriation of fees for licences, or fees for registration or other services under the Bill.
- (2) The Legislative Council may not amend Loan Bills, or Bills imposing taxation, or Bills appropriating revenue or moneys for the ordinary annual services of the Government.
- (3) The Legislative Council may not amend any Bill so as to increase any proposed charge or burden on the people.
- (4) The Legislative Council may at any stage return to the Legislative Assembly any Bill which the Legislative Council may not amend, requesting by message the omission or amendment of any item or provision therein: provided that any such request does not increase any proposed charge or burden on the people. The Legislative Assembly, may if it thinks fit, make such omissions or amendments, with or without modifications.
- (5) Except as provided in this section, the Legislative Council shall have equal power with the Legislative Assembly in respect of all Bills.
- (6) A Bill which appropriates revenue or moneys for the ordinary annual services of the Government shall deal only with such appropriation.
- (7) Bills imposing taxation shall deal only with the imposition of taxation.

- (8) A vote, resolution, or Bill for the appropriation of revenue or moneys shall not be passed unless the purpose of the appropriation has in the same session been recommended by message of the Governor to the Legislative Assembly.
- (9) Any failure to observe any provision of this section shall not be taken to affect the validity of any Act whether enacted before or after the coming into operation of the *Constitution Acts Amendment Act 1977*¹.

[Section 46 inserted by No. 34 of 1921 s. 2; amended by No. 63 of 1950 s. 2; No. 28 of 1977 s. 2.]

[47, 47A. Deleted by No. 40 of 1987 s. 14.]

48. Revision or compilation of electoral rolls upon commencement of Act

- (1) It shall be the duty of the Electoral Registrars, immediately after the commencement of this Act, to amend the Electoral Roll for each Province and District by removing from the roll the name of every elector whose qualification by the operation of this Act is situate or arises in some other Province or District, and to insert every name so removed on the Electoral Roll of the Province or District to which the qualification is, by the operation of this Act, transferred.
- (2) In the case of a Province or District created by this Act for which there is no electoral roll in existence, the Electoral Registrar shall remove from the roll of the Province or District of which the newly created Province or District formed part, the name of every elector whose qualification by the operation of this Act is situate or arises in such newly formed Province or District, and shall compile a roll for every such last-mentioned Province or District of the names so removed in the form prescribed by the *Electoral Act 1899*², and such roll shall be forwarded by such Electoral Registrar to the Electoral Registrar of the newly formed Province or District, and such roll shall be the electoral roll for every such newly formed Province or District until a new roll is completed, and every elector whose

name appears thereon, pursuant to this section, shall be entitled to vote for a member or members for such newly formed Province or District.

49. Commencement of action

No action or other proceeding to recover any forfeiture, penalty, or sum of money under this Act shall be commenced except within 3 months after the time at which the right to bring such action or to take such proceeding first arose.

50. Plaintiff to give security for costs

No action or other proceeding for the recovery of any penalty, forfeiture, or sum of money in respect of the breach or violation of any of the provisions of this Act shall be commenced unless and until the plaintiff shall pay into Court the sum of \$200 as security for all such costs as may be awarded to the defendant in such action or proceeding, and such sum shall abide the order of the Court or a Judge.

[Section 50 amended by No. 113 of 1965 s. 8(1).]

51. No action to lie against officials of either House

No action or other legal proceedings shall lie or be maintained against the President of the Legislative Council, or the Speaker of the Legislative Assembly, or against the Chairman of Committees, or other officer of either House of Parliament, or any member of the Police Force, for anything done by, or under the warrant, or by the direction of, such President, Speaker, or other officer, under or purporting to be under the standing orders or any other order or resolution of the House in which he presides, or of which he is an officer, as the case may be, or under or purporting to be under the provisions of “An Act for defining the Privileges, Immunities, and Powers of the Legislative Council and Legislative Assembly of Western Australia, respectively.”³.

[Section 51 amended by No. 8 of 2009 s. 37.]

52. Proclamation of Royal Assent and commencement of Act

This Act shall be proclaimed in Western Australia by the Governor so soon as he shall have received a notification by telegraph or otherwise of the Royal Assent thereto, and shall commence and take effect from the date of the publication of such Proclamation¹, but the constitution of the existing Legislative Assembly shall remain unaffected by this Act until the said Assembly is dissolved by effluxion of time or otherwise.

Schedule I — Enactments repealed

[s. 2]

[Heading amended by No. 19 of 2010 s. 14(2).]

Session and Number	Extent of Repeal
52 Vict., No. 23	Sections 14, 18 to 21 inclusive, 23 to 30 inclusive, and 32, 33, and 40.
54 Vict., No. 6	The Whole.
55 Vict., No. 32	Section 30, subsections (1a) and (4); Section 31.
56 Vict., No. 17	The Whole.
57 Vict., No. 14	The Whole.
58 Vict., No. 15	The Whole.
60 Vict., No. 18	The Whole.

[Schedule II deleted by No. 46 of 1963 s. 9.]

[Schedule III related to section 30 which was deleted by No. 27 of 1907 s. 211.]

[Schedule IV deleted by No. 19 of 1989 s. 5.]

Schedule V — Offices and bodies to which Part I Division 3 applies

[s. 34 and 37]

[Heading inserted by No. 19 of 2010 s. 14(3).]

Part 1 — Disqualifying offices

[Heading inserted by No. 19 of 2010 s. 14(3).]

Division 1 — Judicial, tribunal and similar offices

[Heading inserted by No. 19 of 2010 s. 14(3).]

Chief Justice of Western Australia or other judge of the Supreme Court.

Master of the Supreme Court.

Chief Judge or other judge of the District Court.

President or other judge or magistrate of the Children's Court.

Chief Judge or other judge of the Family Court of Western Australia.

Chief Magistrate, Deputy Chief Magistrate or magistrate of the Magistrates Court.

Industrial magistrate appointed under the *Industrial Relations Act 1979*.

Coroner appointed under the *Coroners Act 1996*.

Chief Assessor of Criminal Injuries Compensation or an Assessor of Criminal Injuries Compensation appointed under the *Criminal Injuries Compensation Act 2003*.

President of The Western Australian Industrial Relations Commission.

Chief Commissioner, Senior Commissioner or other commissioner of The Western Australian Industrial Relations Commission.

Chairman or other member of the Salaries and Allowances Tribunal established by the *Salaries and Allowances Act 1975*.

Constitution Acts Amendment Act 1899

Schedule V Offices and bodies to which Part I Division 3 applies

Part 1 Disqualifying offices

Chairman of the Coal Industry Superannuation Board.

Chairperson or deputy chairperson of the Coal Industry Tribunal of Western Australia constituted under the *Coal Industry Tribunal of Western Australia Act 1992*.

President or other member of the Mental Health Review Board established under the *Mental Health Act 1996*, including a member of a panel established under section 127 of that Act.

Public service arbitrator appointed under Division 2 of Part IIA of the *Industrial Relations Act 1979*.

Chairman, or deputy of the chairman, of the Railways Classification Board established under Division 3 of Part IIA of the *Industrial Relations Act 1979*.

Member of the State Administrative Tribunal.

Western Australian Energy Disputes Arbitrator appointed under section 62 of the *Energy Arbitration and Review Act 1998*.

[Division 1 inserted by No. 78 of 1984 s. 14; amended by No. 97 of 1986 s. 40; No. 21 of 1987 s. 11; No. 28 of 1989 s. 33(3); No. 15 of 1991 s. 22(a); No. 44 of 1991 s. 3; No. 34 of 1992 s. 85; No. 37 of 1992 s. 39(a); No. 1 of 1995 s. 23(a); No. 2 of 1996 s. 61; No. 65 of 1998 Sch. 3 Div. 1; No. 34 of 1999 s. 61; No. 77 of 2003 s. 73; No. 55 of 2004 s. 1324; No. 59 of 2004 s. 141; No. 73 of 2006 s. 116(2); No. 16 of 2009 s. 68.]

Division 2 — Other offices

[Heading inserted by No. 19 of 2010 s. 14(4).]

Auditor General appointed under the *Auditor General Act 2006*.

Agent General appointed under the *Agent General Act 1895*.

Chief executive officer of an agency within the meaning of the *Public Sector Management Act 1994*.

Clerk of the Legislative Assembly.

Clerk of the Legislative Council.

Commissioner appointed under the *Corruption, Crime and Misconduct Act 2003*.

Commissioner for Children and Young People appointed under the *Commissioner for Children and Young People Act 2006*.

Commissioner of Police appointed under the *Police Act 1892*.

Director of Public Prosecutions and Deputy Director of Public Prosecutions appointed under the *Director of Public Prosecutions Act 1991*.

Director of the Health and Disability Services Complaints Office appointed under the *Health and Disability Services (Complaints) Act 1995*.

Electoral Commissioner or Deputy Electoral Commissioner appointed under the *Electoral Act 1907*.

Information Commissioner appointed under the *Freedom of Information Act 1992*.

Inspector of Custodial Services appointed under the *Inspector of Custodial Services Act 2003*.

Parliamentary Commissioner for Administrative Investigations appointed under the *Parliamentary Commissioner Act 1971*.

Parliamentary Inspector of the Corruption and Crime Commission appointed under the *Corruption, Crime and Misconduct Act 2003*.

Public Sector Commissioner appointed under the *Public Sector Management Act 1994*.

Senior executive officer within the meaning of the *Public Sector Management Act 1994*.

Solicitor-General appointed under the *Solicitor-General Act 1969*.

A prescribed office within the meaning of the *Salaries and Allowances Act 1975*.

[Division 2 inserted by No. 32 of 1994 s. 9(a); amended by No. 57 of 1997 s. 70; No. 43 of 1999 s. 20; No. 55 of 2000 s. 10; No. 20 of 2002 s. 109; No. 67 of 2003 Sch. 2 cl. 6(1); No. 75 of 2003 s. 56(1); No. 48

Constitution Acts Amendment Act 1899

Schedule V Offices and bodies to which Part I Division 3 applies

Part 2 Offices or places vacated on election

*of 2006 s. 65; No. 77 of 2006 Sch. 1 cl. 30; No. 33 of 2010 s. 55;
No. 39 of 2010 s. 73; No. 35 of 2014 s. 39.]*

[Division 3 deleted by No. 32 of 1994 s. 9(a).]

Part 2 — Offices or places vacated on election

[Heading inserted by No. 19 of 2010 s. 14(5).]

Division 1 — Tribunal and board offices

[Heading inserted by No. 19 of 2010 s. 14(5).]

Member, or deputy of a member, of the Coal Industry Tribunal of Western Australia constituted under the *Coal Industry Tribunal of Western Australia Act 1992*.

Member, or deputy of a member, of the Railways Classification Board, established under Division 3 of Part IIA of the *Industrial Relations Act 1979*.

[Division 1 inserted by No. 78 of 1984 s. 14; amended by No. 15 of 1991 s. 22(b); No. 37 of 1992 s. 39(b); No. 1 of 1995 s. 23(b); No. 34 of 1999 s. 61; No. 59 of 2004 s. 141.]

Division 2 — Other offices or places

[Heading inserted by No. 19 of 2010 s. 14(6).]

The office or place of —

Any person employed in a department or SES organization within the meaning of the *Public Sector Management Act 1994*, that is to say —

- (a) any person employed in —
 - (i) that department who is a public service officer; or
 - (ii) that SES organization who is a member of the Senior Executive Service,within the meaning of that Act;
- (b) any person appointed or employed by the Governor under any Act administered in that department or SES organization;

- (c) any person —
- (i) who is appointed or employed under any enactment; or
 - (ii) whose remuneration as such is defrayed in whole or in part out of moneys provided by Parliament,
- being a person appointed or employed by —
- (iii) the Minister of the Crown administering that department or SES organization; or
 - (iv) the chief executive officer or chief employee, within the meaning of the *Public Sector Management Act 1994*, of that department or SES organization; or
 - (v) a person in that department or SES organization in whom the power to make minor appointments is vested in accordance with the proviso to section 74 of the *Constitution Act 1889*.

Any person appointed or employed by the holder of an office mentioned in Division 2 of Part 1.

Any person appointed or employed by a body mentioned in Part 3 or by an instrumentality of which such a body is the governing authority or by The Western Australian Museum constituted under the *Museum Act 1969*, The Library Board of Western Australia constituted under the *Library Board of Western Australia Act 1951*.

Any person who is an employee within the meaning of the *Public Sector Management Act 1994* not referred to in a preceding item of this Division.

Any person who is a member of the Police Force appointed under the *Police Act 1892*.

Any person who is a member of the teaching staff appointed under the *School Education Act 1999*.

Any person appointed pursuant to section 74 of the *Constitution Act 1889* other than a member of the Executive Council who holds any of the principal executive offices of the Government liable to be vacated on political grounds that are referred to in section 43.

Constitution Acts Amendment Act 1899

Schedule V Offices and bodies to which Part I Division 3 applies

Part 3 Bodies membership of which is vacated on election

Any person who is a member of a department of the staff of Parliament referred to in, or an electorate officer within the meaning of, the *Parliamentary and Electorate Staff (Employment) Act 1992*.

[Division 2 inserted by No. 32 of 1994 s. 9(b); amended by No. 36 of 1999 s. 247; No. 3 of 2015 s. 14.]

Part 3 — Bodies membership of which is vacated on election

[Heading inserted by No. 19 of 2010 s. 14(7).]

The Aboriginal Advisory Council established under the *Aboriginal Affairs Planning Authority Act 1972*.

The Aboriginal and Torres Strait Islander Health Practice Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Aboriginal Housing Board responsible to the Minister for Housing.

The Aboriginal Lands Trust established by the *Aboriginal Affairs Planning Authority Act 1972*.

The Aboriginal Cultural Material Committee established by the *Aboriginal Heritage Act 1972*.

The adoption applications committee appointed under the *Adoption Act 1994*.

The advisory committee constituted under the *Charitable Collections Act 1946*.

The Advisory Committee constituted under the *Control of Vehicles (Off-road Areas) Act 1978*.

The Advisory Committee constituted under section 216 of the *Health Act 1911*⁴.

Any advisory body established or continued under the *Children and Community Services Act 2004*.

Any advisory body established under the *Child Care Services Act 2007*.

Any advisory committee established or continued in existence under Part 4 of the *Fish Resources Management Act 1994*.

Any advisory panel appointed under Part 6 of the *Land Administration Act 1997*.

The Agricultural Produce Commission or any producers' committee established under the *Agricultural Produce Commission Act 1988*.

The Air Pollution Control Council established by the *Clean Air Act 1964*⁵.

The Anaesthetic Mortality Committee constituted under the *Health Act 1911*.

The Animal Resources Authority established by the *Animal Resources Authority Act 1981*.

The Appeal Costs Board constituted under the *Suitors' Fund Act 1964*.

The Architects Board of Western Australia established under the *Architects Act 2004*.

Any board constituted under section 3 of the *Parks and Reserves Act 1895* other than the Parliamentary Reserve Board.

The Board of directors of Gold Corporation constituted under the *Gold Corporation Act 1987*.

The Board of Directors of the Honey Pool of Western Australia constituted under the *Honey Pool Act 1978*⁶.

The board of the Minerals Research Institute of Western Australia established under the *Minerals Research Institute of Western Australia Act 2013*.

The board of directors of a corporation established by the Governor under the *Water Corporations Act 1995* section 4(4).

The board of directors of the Bunbury Water Corporation established by the *Water Corporations Act 1995* section 4(2).

The board of directors of the Busselton Water Corporation established by the *Water Corporations Act 1995* section 4(3).

The board of directors of the Water Corporation established by the *Water Corporations Act 1995* section 4(1).

The board of directors of the Western Australian Land Authority constituted under the *Western Australian Land Authority Act 1992*.

The Board of Examiners established under the *Mines Safety and Inspection Act 1994*.

The board of management of the Botanic Gardens and Parks Authority established by the *Botanic Gardens and Parks Authority Act 1998*.

Constitution Acts Amendment Act 1899

Schedule V Offices and bodies to which Part I Division 3 applies

Part 3 Bodies membership of which is vacated on election

The board of management of the Gascoyne Development Commission established by the *Regional Development Commissions Act 1993*.

The board of management of the Goldfields-Esperance Development Commission established by the *Regional Development Commissions Act 1993*.

The board of management of the Great Southern Development Commission established by the *Regional Development Commissions Act 1993*.

The board of management of the Kimberley Development Commission established by the *Regional Development Commissions Act 1993*.

The board of management of the Mid West Development Commission established by the *Regional Development Commissions Act 1993*.

The board of management of the Peel Development Commission established by the *Regional Development Commissions Act 1993*.

The board of management of the Pilbara Development Commission established by the *Regional Development Commissions Act 1993*.

The board of management of the South West Development Commission established by the *Regional Development Commissions Act 1993*.

The board of management of the Wheatbelt Development Commission established by the *Regional Development Commissions Act 1993*.

The board of management of the Western Australian Land Information Authority established by the *Land Information Authority Act 2006*.

The board of management of the Western Australian Sports Centre Trust constituted under the *Western Australian Sports Centre Trust Act 1986*.

Any board of reference constituted under the *Construction Safety Act 1972*⁷ or the *Machinery Safety Act 1974*⁷.

The Board of the Art Gallery of Western Australia constituted under the *Art Gallery Act 1959*.

The board of the Western Australian Greyhound Racing Association constituted under the *Western Australian Greyhound Racing Association Act 1981*.

The Board of Valuers established by the *Planning and Development Act 2005*.

The Building Services Board established under the *Building Services (Registration) Act 2011*.

The Building and Construction Industry Training Board established under the *Building and Construction Industry Training Fund and Levy Collection Act 1990*.

The Caravan Parks and Camping Grounds Advisory Committee established under the *Caravan Parks and Camping Grounds Act 1995*.

The Casino Control Committee⁸ established under the *Casino Control Act 1984*.

The Charcoal Iron and Steel Industry Board of Management constituted under the *Wood Distillation and Charcoal Iron and Steel Industry Act 1943*⁹.

The Chemistry Centre (WA) established by the *Chemistry Centre (WA) Act 2007*.

The Chicken Meat Industry Committee continued by the *Chicken Meat Industry Act 1977*¹⁰.

The Chinese Medicine Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Chiropractic Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Coal Miners' Welfare Board of Western Australia constituted under the *Coal Miners' Welfare Act 1947*.

The Conservation and Environment Council¹¹ established under the *Environmental Protection Act 1971*¹².

The Conservation Commission of Western Australia established under the *Conservation and Land Management Act 1984*.

The Construction Safety Advisory Board constituted under the *Construction Safety Act 1972*⁷.

Any consultative committee appointed under the *Legal Aid Commission Act 1976*.

The Consumer Advisory Committee established under the *Fair Trading Act 2010*.

Constitution Acts Amendment Act 1899

Schedule V Offices and bodies to which Part I Division 3 applies

Part 3 Bodies membership of which is vacated on election

Council of Official Visitors established by Part 9 of the *Mental Health Act 1996*.

The Country High School Hostels Authority established by the *Country High School Hostels Authority Act 1960*.

The Country Housing Authority established under the *Country Housing Act 1998*.

The Dental Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Disability Services Commission being the body continued by section 6 of the *Disability Services Act 1993*.

The Distressed Persons Relief Trust constituted by the *Distressed Persons Relief Trust Act 1973*¹³.

Any district advisory committee established under section 23 of the *Soil and Land Conservation Act 1945*¹⁴.

The Economic Regulation Authority established by the *Economic Regulation Authority Act 2003*.

The Electricity Generation and Retail Corporation established by section 4(1)(a) of the *Electricity Corporations Act 2005*.

The Electricity Networks Corporation established by section 4(1)(b) of the *Electricity Corporations Act 2005*.

Any environmental appeal board¹⁵ constituted under the *Environmental Protection Act 1971*¹².

The Environmental Protection Authority¹⁶ established under the *Environmental Protection Act 1971*¹².

The Fluoridation of Public Water Supplies Advisory Committee established under the *Fluoridation of Public Water Supplies Act 1966*.

The Forest Products Commission established under the *Forest Products Act 2000*.

The Fremantle Port Authority established under the *Port Authorities Act 1999*.

The Gender Reassignment Board of Western Australia established by the *Gender Reassignment Act 2000*.

The governing body of the School Curriculum and Standards Authority established by the *School Curriculum and Standards Authority Act 1997*.

The Government Employees Superannuation Board under the *State Superannuation Act 2000*.

The Hairdressers Registration Board of Western Australia constituted under the *Hairdressers Registration Act 1946*¹⁷.

The Health Education Council of Western Australia constituted under the *Health Education Council Act 1958*¹³.

The Heritage Council of Western Australia established under the *Heritage of Western Australia Act 1990*.

Agency established under section 7B of the *Hospitals and Health Services Act 1927*.

Any hospital board constituted under the *Hospitals and Health Services Act 1927*.

The Insurance Brokers Licensing Board constituted under the *General Insurance Brokers and Agents Act 1981*¹⁸.

Insurance Commission of Western Australia continued under the *Insurance Commission of Western Australia Act 1986*.

The Keep Australia Beautiful Council (W.A.) established by the *Litter Act 1979*.

The Kimberley Ports Authority established under the *Port Authorities Act 1999*.

The Land Surveyors Licensing Board constituted under the *Licensed Surveyors Act 1909*.

The Land Valuers Licensing Board¹⁹ constituted under the *Land Valuers Licensing Act 1978*.

The Landcare Trust established under Part VA of the *Soil and Land Conservation Act 1945*.

The Law Reform Commission of Western Australia established under the *Law Reform Commission Act 1972*.

The Law Reporting Advisory Board constituted by the *Law Reporting Act 1981*.

Constitution Acts Amendment Act 1899

Schedule V Offices and bodies to which Part I Division 3 applies

Part 3 Bodies membership of which is vacated on election

The Legal Aid Commission of Western Australia established under the *Legal Aid Commission Act 1976*.

The Legal Contribution Trust established by the *Legal Profession Act 2008*.

The Legislative Review and Advisory Committee established under the *Legislative Review and Advisory Committee Act 1976*²⁰.

The Liquor Commission established under the *Liquor Control Act 1988*.

The Local Government Advisory Board established under the *Local Government Act 1995*.

The Lotteries Commission continued under the *Lotteries Commission Act 1990*.

The Machinery Safety Advisory board constituted under the *Machinery Safety Act 1974*⁷.

The Maternal Mortality Committee constituted under the *Health Act 1911*.

The Medical Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Medical Radiation Practice Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The board of management of the Metropolitan Redevelopment Authority established under the *Metropolitan Redevelopment Authority Act 2011*.

Any land redevelopment committee established under the *Metropolitan Redevelopment Authority Act 2011*.

The Mid West Ports Authority established under the *Port Authorities Act 1999*.

The Mines Occupational Safety and Health Advisory Board established under the *Mines Safety and Inspection Act 1994*²¹.

The Mines Survey Board established under the *Mines Safety and Inspection Act 1994*.

The Mining and Petroleum Advisory Committee established under the *Mining and Petroleum Research Act 1981*²².

The Mining Rehabilitation Advisory Panel established by the *Mining Rehabilitation Fund Act 2012*.

The Ministerial Advisory Council on Disability established under the *Disability Services Act 1993*.

The Motor Vehicle Industry Advisory Committee established under the *Fair Trading Act 2010*.

The Motor Vehicle Industry Board²³ established under the *Motor Vehicle Dealers Act 1973*.

The Multicultural and Ethnic Affairs Commission established by the *Multicultural and Ethnic Affairs Commission Act 1983*²⁴.

The National Parks Authority of Western Australia established by the *National Parks Authority Act 1976*²⁵.

The Noise Abatement Advisory Committee established by the *Noise Abatement Act 1972*⁷.

The Noise and Vibration Control Council established by the *Noise Abatement Act 1972*⁷.

The Nomenclature Advisory Committee responsible to the Minister for Lands and Surveys²⁶.

The Nursing and Midwifery Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Occupational Therapy Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Optometry Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Osteopathy Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Pastoral Appraisal Board constituted under the *Land Act 1933*²⁷.

The Perinatal and Infant Mortality Committee constituted under the *Health Act 1911*.

The Perth Market Authority preserved and continued under the *Perth Market Act 1926*.

The Perth Theatre Trust established by the *Perth Theatre Trust Act 1979*.

Constitution Acts Amendment Act 1899

Schedule V Offices and bodies to which Part I Division 3 applies

Part 3 Bodies membership of which is vacated on election

The Pharmacy Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Pharmacy Registration Board of Western Australia established under the *Pharmacy Act 2010*.

The Physiotherapy Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Pilbara Ports Authority established under the *Port Authorities Act 1999*.

The Plumbers Licensing Board established by the *Plumbers Licensing Act 1995*.

The Podiatry Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Poisons Advisory Committee constituted by the *Poisons Act 1964*.

Potato Marketing Corporation of Western Australia constituted by the *Marketing of Potatoes Act 1946*.

Any prices advisory committee established under the *Petroleum Products Pricing Act 1983*.

The Primary Schools Appointments Board constituted under regulation 91 of the *Education Regulations 1960*²⁸.

The Prisoners Review Board established under the *Sentence Administration Act 2003*.

The Professional Standards Council established under the *Professional Standards Act 1997*.

Any professional, trade or other advisory committee established pursuant to regulation 253 of the *Education Regulations 1960*²⁸.

The Property Industry Advisory Committee established under the *Fair Trading Act 2010*.

The Psychology Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Public Transport Authority of Western Australia established by the *Public Transport Authority Act 2003*.

The Queen Elizabeth II Medical Centre Trust constituted under the *Queen Elizabeth II Medical Centre Act 1966*.

The board of Racing and Wagering Western Australia established by the *Racing and Wagering Western Australia Act 2003*.

The Radiological Council established under the *Radiation Safety Act 1975*.

The Real Estate and Business Agents Supervisory Board²⁹ constituted under the *Real Estate and Business Agents Act 1978*.

The Regional Power Corporation established by section 4(1)(d) of the *Electricity Corporations Act 2005*.

The Road Safety Council established under the *Road Safety Council Act 2002*.

The Road Freight Transport Industry Council established under the *Owner-Drivers (Contracts and Disputes) Act 2007*.

The Rural Business Development Corporation preserved and continued by the *Rural Business Development Corporation Act 2000*.

Any selection committee constituted under regulation 2.7 of the *Mines Regulation Act Regulations 1976*³⁰.

The Settlement Agents Supervisory Board³¹ constituted under the *Settlement Agents Act 1981*.

The Small Business Development Corporation established under the *Small Business Development Corporation Act 1983*.

The Soil and Land Conservation Council constituted under the *Soil and Land Conservation Act 1945*.

The Solar Energy Advisory Committee established under the *Solar Energy Research Act 1977*³².

The Southern Ports Authority established under the *Port Authorities Act 1999*.

The State Advisory Committee on Publications constituted under the *Indecent Publications and Articles Act 1902*³³.

The State Supply Commission established under the *State Supply Commission Act 1991*.

The State Training Board of Western Australia established under the *Vocational Education and Training Act 1996*.

The Supervised Release Review Board established under the *Young Offenders Act 1994*.

Constitution Acts Amendment Act 1899

Schedule V Offices and bodies to which Part I Division 3 applies

Part 3 Bodies membership of which is vacated on election

The Taxi Industry Board established by the *Taxi Act 1994*.

The Teacher Registration Board of Western Australia established under the *Teacher Registration Act 2012*.

Any technical college, school or centre advisory committee established under regulation 256 of the *Education Regulations 1960*²⁸.

The Training Accreditation Council established under the *Vocational Education and Training Act 1996*.

Any Transport Strategy Committee established under the *State Transport Co-ordination Act 1981*³⁴.

The Trustees of the Karrakatta Cemetery appointed under the *Cemeteries Act 1897*³⁵.

The Trustees of the Technical Education Division Self Supporting Activities appointed under regulation 240 of the *Education Regulations 1960*²⁸.

The Urban Lands Council³⁶ responsible to the Minister for Housing.

The Veterinary Preparations and Animal Feeding Stuffs Advisory Committee established under the *Veterinary Preparations and Animal Feeding Stuffs Act 1976*³⁷.

The Veterinary Surgeons' Board constituted under the *Veterinary Surgeons Act 1960*.

The Waste Authority established under the *Waste Avoidance and Resource Recovery Act 2007*.

The Water Resources Council established by the *Water Agencies (Powers) Act 1984*.

The Western Australia Marine Manning Committee established by the *Western Australian Marine Act 1982*.

The Western Australian Arts Council established by the *Western Australian Arts Council Act 1973*³⁸.

The Western Australian Coastal Shipping Commission established by the *Western Australian Coastal Shipping Commission Act 1965*.

The Western Australian Health Promotion Foundation established under the *Tobacco Products Control Act 2006*.

The Western Australian Herbarium Committee³⁹ responsible to the Minister for Agriculture.

The Western Australian Heritage Committee³⁹ responsible to the Minister for the Environment.

The Western Australian Local Government Grants Commission established under the *Local Government Grants Act 1978*.

The Western Australian Meat Industry Authority established under the *Western Australian Meat Industry Authority Act 1976*.

The Western Australian Planning Commission established under the *Planning and Development Act 2005*.

The Western Australian Post-Secondary Education Commission established by the *Western Australian Post-Secondary Education Commission Act 1970*⁴⁰.

The Western Australian Regional Development Trust established under the *Royalties for Regions Act 2009*.

The Western Australian Reproductive Technology Council established under the *Human Reproductive Technology Act 1991*.

The Western Australian Technology and Industry Advisory Council established under the *Industry and Technology Development Act 1998*.

The Western Australian Tourism Commission established under the *Western Australian Tourism Commission Act 1983*.

The Western Australian Tripartite Labour Consultative Council established under the *Western Australian Tripartite Labour Consultative Council Act 1983*⁴¹.

The Western Australian Wheat Board constituted under the *Wheat Marketing Act 1979*⁴².

The Western Australian Wheat Marketing Board constituted by the *Wheat Marketing Act 1947*⁴³.

The Western Australian Wildlife Authority constituted under the *Wildlife Conservation Act 1950*⁴⁴.

Any wheat products prices committee constituted under the *Wheat Products (Prices Fixation) Act 1938*²⁴.

Constitution Acts Amendment Act 1899

Schedule V Offices and bodies to which Part I Division 3 applies

Part 3 Bodies membership of which is vacated on election

The Youth, Sport and Recreation Advisory Committee established under the *Youth, Sport and Recreation Act 1978*⁴⁵.

The Zoological Parks Authority established under the *Zoological Parks Authority Act 2001*.

[Part 3 inserted by No. 78 of 1984 s. 14; amended by No. 101 of 1986 s. 23; No. 32 of 1987 s. 36; No. 83 of 1987 s. 38; No. 88 of 1987 s. 20; No. 89 of 1987 s. 43; No. 99 of 1987 s. 79; No. 114 of 1987 s. 12; No. 75 of 1988 s. 27(2); No. 6 of 1990 s. 12; No. 10 of 1990 s. 38; No. 16 of 1990 s. 33; No. 27 of 1990 s. 4; No. 39 of 1990 s. 36; No. 40 of 1990 s. 46; No. 73 of 1990 s. 45; No. 76 of 1990 s. 33; No. 91 of 1990 s. 17; No. 104 of 1990 s. 35(1); No. 5 of 1991 s. 35; No. 22 of 1991 s. 63; No. 60 of 1991 s. 21; No. 62 of 1991 s. 59; No. 5 of 1992 s. 12(1); No. 27 of 1992 s. 84; No. 29 of 1992 s. 55; No. 40 of 1992 s. 3(b); No. 59 of 1992 s. 25; No. 77 of 1992 s. 41; No. 2 of 1993 s. 15; No. 10 of 1993 s. 56; No. 26 of 1993 s. 20; No. 32 of 1993 s. 11(2); No. 36 of 1993 s. 58; No. 40 of 1993 s. 20; No. 53 of 1993 s. 44; No. 6 of 1994 s. 13; No. 9 of 1994 s. 145; No. 35 of 1994 s. 67; No. 36 of 1994 s. 35; No. 45 of 1994 s. 21; No. 53 of 1994 s. 264; No. 62 of 1994 s. 109; No. 73 of 1994 s. 4; No. 83 of 1994 s. 50; No. 84 of 1994 s. 46(5); No. 89 of 1994 s. 109; No. 96 of 1994 s. 92; No. 103 of 1994 s. 18; No. 104 of 1994 s. 236; No. 11 of 1995 s. 58(1); No. 14 of 1995 s. 44; No. 26 of 1995 s. 23; No. 34 of 1995 s. 33; No. 73 of 1995 s. 188; No. 78 of 1995 s. 16; No. 14 of 1996 s. 4; No. 15 of 1996 s. 8(1); No. 40 of 1996 s. 152(3); No. 42 of 1996 s. 71; No. 45 of 1996 s. 38; No. 76 of 1996 s. 21; No. 17 of 1997 s. 35; No. 22 of 1997 s. 58; No. 31 of 1997 s. 16; No. 57 of 1997 s. 37; No. 58 of 1997 s. 97; No. 4 of 1998 s. 48; No. 13 of 1998 s. 34(1); No. 23 of 1998 s. 20; No. 30 of 1998 s. 8; No. 42 of 1998 s. 38; No. 45 of 1998 s. 8(1); No. 56 of 1998 s. 56; No. 5 of 1999 s. 21; No. 8 of 1999 s. 16; No. 26 of 1999 s. 67; No. 38 of 1999 s. 70; No. 39 of 1999 s. 11(2); No. 44 of 1999 s. 28(1); No. 58 of 1999 s. 100; No. 2 of 2000 s. 29(2); No. 20 of 2000 s. 33(1); No. 24 of 2000 s. 3(6) and 14(13); No. 35 of 2000 s. 52(1); No. 43 of 2000 s. 35; No. 72 of 2000 s. 44; No. 76 of 2000 s. 61; No. 12 of 2001 s. 47; No. 24 of 2001 s. 47; No. 25 of 2001 s. 69; No. 5 of 2002 s. 15; No. 24 of 2002 s. 22; No. 30 of 2002 s. 47; No. 8 of 2003 s. 87; No. 30 of 2003 s. 43; No. 31 of 2003 s. 202; No. 35 of 2003 s. 20, 50(2), 68(1), 116(1) and 221(1); No. 48 of 2003 s. 62⁴⁶; No. 50 of 2003 s. 29(3); No. 67 of 2003 Sch. 2 cl. 6(2); No. 73 of 2003 s. 24; No. 8 of 2004 s. 88; No. 20 of 2004 s. 7; No. 34 of 2004 Sch. 2 cl. 5; No. 40 of 2004 s. 16; No. 42 of 2004 s. 157; No. 53 of

2004 s. 79; No. 54 of 2004 s. 174; No. 55 of 2004 s. 1324; No. 57 of 2004 s. 35; No. 75 of 2004 s. 79; No. 18 of 2005 s. 139; No. 28 of 2005 Sch. 3 cl. 2; No. 29 of 2005 Sch. 3 cl. 2; No. 30 of 2005 Sch. 3 cl. 2; No. 31 of 2005 Sch. 3 cl. 2; No. 32 of 2005 Sch. 3 cl. 2; No. 33 of 2005 Sch. 3 cl. 2; No. 38 of 2005 s. 15; No. 42 of 2005 Sch. 3 cl. 4; No. 5 of 2006 s. 126; No. 21 of 2006 Sch. 3 cl. 2; No. 28 of 2006 s. 396; No. 41 of 2006 s. 89; No. 43 of 2006 s. 4; No. 50 of 2006 Sch. 3 cl. 3; No. 60 of 2006 s. 185; No. 73 of 2006 s. 116(3); No. 7 of 2007 s. 58; No. 10 of 2007 s. 43; No. 19 of 2007 s. 67; No. 24 of 2007 s. 22, 35 and 51; No. 36 of 2007 Sch. 4 cl. 1; No. 38 of 2007 s. 192; No. 21 of 2008 s. 650; No. 22 of 2008 Sch. 3 cl. 91; No. 28 of 2008 s. 12; No. 41 of 2009 s. 32; No. 30 of 2010 s. 4; No. 32 of 2010 s. 74; No. 35 of 2010 s. 44; No. 58 of 2010 s. 191; No. 16 of 2011 s. 127; No. 19 of 2011 s. 155; No. 24 of 2011 s. 160; No. 37 of 2011 s. 55; No. 45 of 2011 s. 136; No. 47 of 2011 s. 4; No. 54 of 2011 s. 3; No. 16 of 2012 s. 164; No. 22 of 2012 s. 111; No. 25 of 2012 s. 208; No. 33 of 2012 Pt. 6; No. 23 of 2013 s. 76; No. 25 of 2013 s. 37; No. 9 of 2014 s. 44; No. 23 of 2014 s. 96.]

Schedule VI — Oaths and affirmations of office

[s. 43(4), 44A(6) & 45]

[Heading inserted by No. 24 of 2005 s. 12.]

**Division 1 — Holders of principal executive offices and for
Parliamentary Secretaries**

[Heading inserted by No. 24 of 2005 s. 12.]

I, [name], *[insert an oath or affirmation according to the Oaths, Affidavits and Statutory Declarations Act 2005]* that I will faithfully serve the people of Western Australia in the office of *[title of office]*.

[Division 1 inserted by No. 24 of 2005 s. 12.]

Division 2 — Members of the Executive Council

[Heading inserted by No. 24 of 2005 s. 12.]

I, [name], *[insert an oath or affirmation according to the Oaths, Affidavits and Statutory Declarations Act 2005]* —

that I will faithfully serve the people of Western Australia as a member of the Executive Council;

that as and when required to do so I will freely give my advice as such a member to the Governor, or the person performing the functions of the Governor, for the good management of the public affairs of Western Australia;

and that I will not, directly or indirectly, reveal any matters that come before the Council and that I am required by the Council to keep secret.

[Division 2 inserted by No. 24 of 2005 s. 12.]

Notes

- ¹ This is a compilation of the *Constitution Acts Amendment Act 1899* and includes the amendments made by the other written laws referred to in the following table ^{1a, 47, 48, 49, 50}. The table also contains information about any reprint.

Compilation table

Short title	Number and year	Assent	Commencement
<i>Constitution Acts Amendment Act 1899</i>	1899 (63 Vict. No. 19)	18 May 1900	18 May 1900 (see s. 52 and <i>Gazette</i> 18 May 1900 p. 1686). Reserved for Royal Assent 16 Dec 1899
<i>Constitution Acts Amendment Act 1899 amendment (1900)</i>	1900 (64 Vict. No. 2)	25 Sep 1900	25 Sep 1900
<i>Electoral Act 1904</i> s. 14	20 of 1904 (3 Edw. VII No. 35)	16 Jan 1904	22 Apr 1904 (see <i>Interpretation Act 1918</i> s. 8 and <i>Gazette</i> 22 Apr 1904 p. 1047). Reserved for Royal Assent 16 Jan 1904
<i>Electoral Act 1907</i> s. 211	27 of 1907 (7 Edw. VII No. 27)	20 Dec 1907	20 Dec 1907
<i>Constitution Act Amendment Act 1911</i>	31 of 1911 (1 Geo. V No. 42)	16 Feb 1911	16 Feb 1911
<i>Legislative Assembly Duration Act 1919</i> s. 2	48 of 1919 (10 Geo. V No. 36)	17 Dec 1919	17 Dec 1919
<i>Parliament (Qualification of Women) Act 1920</i> s. 2(2)	7 of 1920 (11 Geo. V No. 7)	3 Nov 1920	3 Nov 1920
<i>Constitution Act Amendment Act 1921</i> s. 2	34 of 1921 (12 Geo. V No. 34)	30 Dec 1921	30 Dec 1921
<i>Constitution Act Amendment Act 1927</i>	25 of 1927 (18 Geo. V No. 25)	14 Dec 1927	14 Dec 1927 (see s. 1 and <i>Gazette</i> 14 Dec 1927 p. 2743)

Constitution Acts Amendment Act 1899

Short title	Number and year	Assent	Commencement
<i>Constitution Acts Amendment Act 1933</i>	25 of 1933 (24 Geo. V No. 25) (as amended by No. 46 of 1963 s. 10)	1 Dec 1933	1 Dec 1933
<i>Constitution Acts Amendment Act 1934</i>	40 of 1934 (25 Geo. V No. 39)	4 Jan 1935	4 Jan 1935
<i>Constitution Acts Amendment Act 1942</i>	29 of 1942 (6 and 7 Geo. VI No. 29) (as amended by No. 46 of 1963 s. 10)	23 Dec 1942	23 Dec 1942
<i>Constitution Acts Amendment Act Amendment Act (No. 4) 1945</i>	52 of 1945 (9 and 10 Geo. VI No. 52)	30 Jan 1946	30 Jan 1946
<i>Constitution Acts Amendment Act (No. 1) 1947</i>	2 of 1947 (11 Geo. VI No. 2)	26 Sep 1947	14 Dec 1927 (see s. 3)
<i>Constitution Acts Amendment (Re-election of Ministers) Act 1947</i>	4 of 1947 (11 Geo. VI No. 4) (as amended by No. 46 of 1963 s. 10)	2 Oct 1947	2 Oct 1947
<i>Acts Amendment (Allowances and Salaries Adjustment) Act 1947 s. 4</i>	52 of 1947 (11 and 12 Geo. VI No. 52)	19 Dec 1947	19 Dec 1947
<i>Constitution Acts Amendment Act (No. 1) 1948</i>	12 of 1948 (12 Geo. VI No. 12) (as amended by No. 46 of 1963 s. 10)	11 Nov 1948	12 Jun 1947 (see s. 4)

Short title	Number and year	Assent	Commencement
<i>Acts Amendment (Increase in number of Judges of the Supreme Court) Act 1949 s. 3</i>	17 of 1949 (13 Geo. VI No. 103)	24 Sep 1949	24 Sep 1949 (see s. 1 and <i>Judges' Salaries and Pensions Act 1950 s. 4</i>)
<i>Acts Amendment (Increase in number of Ministers of the Crown) Act 1950 s. 2</i>	2 of 1950 (14 Geo. VI No. 2)	24 Oct 1950	24 Oct 1950
<i>Judges' Salaries and Pensions Act 1950 s. 4</i>	35 of 1950 (14 and 15 Geo. VI No. 35)	16 Dec 1950	16 Dec 1950
<i>Constitution Acts Amendment Act (No. 2) 1950</i>	45 of 1950 (14 and 15 Geo. VI No. 45) (as amended by No. 46 of 1963 s. 10)	18 Dec 1950	18 Dec 1950
<i>Constitution Acts Amendment Act (No. 4) 1950</i>	63 of 1950 (14 and 15 Geo. VI No. 63)	29 Dec 1950	29 Dec 1950
<i>Constitution Acts Amendment Act (No. 2) 1954</i>	32 of 1954 (3 Eliz. II No. 32)	18 Nov 1954	18 Nov 1954
<i>Constitution Acts Amendment Act 1955</i>	34 of 1955 (4 Eliz. II No. 34)	28 Nov 1955	28 Nov 1955
<i>Constitution Acts Amendment Act (No. 3) 1955</i>	48 of 1955 (4 Eliz. II No. 48)	4 May 1956	4 May 1956 (see <i>Interpretation Act 1918 s. 8</i> and <i>Gazette</i> 4 May 1956 p. 1147). Reserved for Royal Assent 9 Dec 1955
<i>Constitution Acts Amendment Act 1958</i>	2 of 1958 (7 Eliz. II No. 2)	19 Sep 1958	19 Sep 1958
<i>Constitution Acts Amendment Act (No. 3) 1959</i>	71 of 1959 (8 Eliz. II No. 71)	8 Feb 1960	25 Mar 1960 (see <i>Interpretation Act 1918 s. 8</i> and <i>Gazette</i> 25 Mar 1960 p. 883). Reserved for Royal Assent 10 Dec 1959

Short title	Number and year	Assent	Commencement
<i>Constitution Acts Amendment Act (No. 2) 1962</i>	48 of 1962 (11 Eliz. II No. 48)	20 Nov 1962	20 Nov 1962
<i>Constitution Acts Amendment and Revision Act 1963</i>	46 of 1963 (12 Eliz. II No. 46)	3 Dec 1963	3 Dec 1963
<i>Constitution Acts Amendment Act (No. 2) 1963</i>	72 of 1963 (12 Eliz. II No. 72)	17 Dec 1963	26 Mar 1964 (see s. 2 and <i>Gazette</i> 6 Mar 1964 p. 993)
Reprint of the <i>Constitution Acts Amendment Act 1899</i> approved 30 Nov 1964 (not in Volume) (includes amendments listed above)			
<i>Constitution Acts Amendment Act 1965</i>	2 of 1965	13 Aug 1965	13 Aug 1965
<i>Constitution Acts Amendment Act (No. 2) 1965</i>	49 of 1965	8 Nov 1965	12 Nov 1965 (see s. 2 and <i>Gazette</i> 12 Nov 1965 p. 3913)
<i>Decimal Currency Act 1965</i>	113 of 1965	21 Dec 1965	Act other than s. 4-9: 21 Dec 1965 (see s. 2(1)); s. 4-9: 14 Feb 1966 (see s. 2(2))
<i>Constitution Acts Amendment Act (No. 3) 1965</i>	105 of 1965	10 Mar 1966	29 Apr 1966 (see <i>Interpretation Act 1918</i> s. 8 and <i>Gazette</i> 29 Apr 1966 p. 1017). Reserved for Royal Assent 20 Dec 1965
Reprint of the <i>Constitution Acts Amendment Act 1899</i> approved 23 Jan 1967 (in Vol. 20 of Reprinted Acts) (includes amendments listed above)			
<i>Constitution Acts Amendment Act 1969</i>	111 of 1969	4 Feb 1970	20 Mar 1970 (see <i>Interpretation Act 1918</i> s. 8 and <i>Gazette</i> 20 Mar 1970 p. 843). Reserved for Royal Assent 25 Nov 1969
Reprint of the <i>Constitution Acts Amendment Act 1899</i> approved 18 May 1971 (includes amendments listed above)			
<i>Constitution Acts Amendment Act 1972</i>	9 of 1972	25 May 1972	25 May 1972
<i>Constitution Acts Amendment Act 1973</i>	52 of 1973	6 Nov 1973	1 Jan 1974 (see s. 2 and <i>Gazette</i> 28 Dec 1973 p. 4725)

Short title	Number and year	Assent	Commencement
<i>Constitution Acts Amendment Act 1974</i>	30 of 1974	4 Dec 1974	28 Feb 1975 (see <i>Interpretation Act 1918</i> s. 8 and <i>Gazette</i> 28 Feb 1975 p. 719). Reserved for Royal Assent 1 Nov 1974
<i>Constitution Acts Amendment Act 1975</i>	15 of 1975	9 May 1975	9 May 1975
<i>Constitution Acts Amendment Act (No. 2) 1975</i>	71 of 1975	7 Nov 1975	7 Nov 1975
<i>Constitution Acts Amendment Act (No. 4) 1975</i>	86 of 1975	20 Nov 1975	20 Nov 1975
<i>Constitution Acts Amendment (No. 3) Act 1975</i>	111 of 1975	1 Dec 1975	1 Dec 1975
<i>Constitution Acts Amendment Act 1977</i>	28 of 1977	31 Oct 1977	31 Oct 1977
<i>Acts Amendment (Constitution) Act 1978 Pt. II</i>	59 of 1978	15 Nov 1978	22 Dec 1978 (see <i>Interpretation Act 1918</i> s. 8 and <i>Gazette</i> 22 Dec 1978 p. 4769-70). Reserved for Royal Assent 20 Sep 1978
<i>Constitution Amendment Act (No. 2) 1980</i>	4 of 1980	9 Sep 1980	9 Sep 1980
<i>Constitution Amendment Act 1980</i>	5 of 1980	9 Sep 1980	9 Sep 1980
<i>Acts Amendment (Electoral Provinces and Districts) Act 1981 Pt. I</i>	13 of 1981	22 May 1981	22 May 1981
<i>Constitution Amendment Act 1983</i>	8 of 1983	29 Sep 1983	26 Jan 1984 (see s. 2 and <i>Gazette</i> 20 Jan 1984 p. 119)
Reprint of the Constitution Acts Amendment Act 1899 approved 26 Jun 1984 (includes amendments listed above)			
<i>Acts Amendment and Repeal (Disqualification for Parliament) Act 1984 Pt. V</i>	78 of 1984	14 Nov 1984	1 Jul 1985 (see s. 2 and <i>Gazette</i> 17 May 1985 p. 1671)

Short title	Number and year	Assent	Commencement
<i>Constitution Amendment Act 1984</i>	75 of 1984	20 Mar 1985	14 Jun 1985 (see <i>Interpretation Act 1984</i> s. 20(3) and <i>Gazette</i> 14 Jun 1985 p. 2133). Reserved for Royal Assent 4 Feb 1985
<i>Constitution Amendment Act 1986</i>	10 of 1986	22 Jul 1986	22 Jul 1986 (see s. 2)
<i>Liquor Amendment Act (No. 2) 1986 Pt. IV</i>	97 of 1986	11 Dec 1986	11 Feb 1987 (see s. 2(3) and <i>Gazette</i> 6 Feb 1987 p. 287)
<i>Western Australian Sports Centre Trust Act 1986</i> s. 23	101 of 1986	12 Dec 1986	24 Dec 1986 (see s. 2 and <i>Gazette</i> 24 Dec 1986 p. 4963)
<i>Workers' Compensation and Assistance Amendment Act 1987</i> s. 11	21 of 1987	25 Jun 1987	23 Jul 1987
<i>Technology Development Amendment Act 1987</i> s. 36	32 of 1987	29 Jun 1987	30 Jun 1987 (see s. 2 and <i>Gazette</i> 30 Jun 1987 p. 2545)
<i>Acts Amendment (Electoral Reform) Act 1987 Pt. III</i>	40 of 1987	12 Jul 1987	30 Oct 1987 (see s. 2 and <i>Gazette</i> 30 Oct 1987 p. 3977)
<i>The Rural and Industries Bank of Western Australia Act 1987</i> s. 38	83 of 1987	1 Dec 1987	1 Apr 1988 (see s. 2)
<i>Solar Energy Research Amendment Act 1987</i> s. 20	88 of 1987	9 Dec 1987	9 Dec 1987 (see s. 3(1))
<i>Minerals and Energy Research Act 1987</i> s. 43	89 of 1987	9 Dec 1987	1 Feb 1988 (see s. 2 and <i>Gazette</i> 15 Jan 1988 p. 67)
<i>Gold Banking Corporation Act 1987</i> s. 79	99 of 1987	18 Dec 1987	30 Jun 1988 (see s. 2 and <i>Gazette</i> 30 Jun 1988 p. 2133)
<i>Acts Amendment (Public Service) Act 1987</i> s. 32	113 of 1987	31 Dec 1987	16 Mar 1988 (see s. 2 and <i>Gazette</i> 16 Mar 1988 p. 813)
<i>Acts Amendment (Retail Trading Hours) Act 1987</i> s. 12	114 of 1987	31 Dec 1987	1 Sep 1988 (see s. 2 and <i>Gazette</i> 12 Aug 1988 p. 2695)
<i>Horticultural Produce Commission Act 1988</i> s. 27(2)	75 of 1988	23 Dec 1988	1 Sep 1989 (see s. 2 and <i>Gazette</i> 1 Sep 1989 p. 3017)

Short title	Number and year	Assent	Commencement
Reprint of the <i>Constitution Acts Amendment Act 1899</i> as at 16 Mar 1989 (includes amendments listed above except those in the <i>Horticultural Produce Commission Act 1988</i>)			
<i>Acts Amendment (Remuneration of Governor) Act 1989</i> Pt. 2	19 of 1989	1 Dec 1989	16 Feb 1990 (see s. 2(2) and <i>Gazette</i> 16 Feb 1990 p. 1110)
<i>Coal Industry Superannuation Act 1989</i> s. 33(3)	28 of 1989	12 Dec 1989	1 Jul 1990 (see s. 2 and <i>Gazette</i> 22 Jun 1990 p. 3027)
<i>Acts Amendment (Perth Market Authority) Act 1990</i> Pt. 3	6 of 1990	12 Jul 1990	1 Jan 1991 (see s. 2 and <i>Gazette</i> 21 Dec 1990 p. 6211)
<i>Acts Amendment (Gold Banking Corporation) Act 1990</i> Pt. 4	10 of 1990	31 Jul 1990	28 Sep 1990 (see s. 2 and <i>Gazette</i> 28 Sep 1990 p. 4981)
<i>Lotteries Commission Act 1990</i> s. 33	16 of 1990	31 Jul 1990	1 Jan 1991 (see s. 2 and <i>Gazette</i> 28 Dec 1990 p. 6369)
<i>Mining Development Act Repeal Act 1990</i> s. 4	27 of 1990	27 Sep 1990	27 Sep 1990 (see s. 2)
<i>Acts Amendment (Parliamentary Secretaries) Act 1990</i> Pt. 2	38 of 1990	8 Nov 1990	8 Nov 1990 (see s. 2)
<i>Goldfields-Esperance Development Authority Act 1990</i> s. 36	39 of 1990	8 Nov 1990	7 Dec 1990 (see s. 2 and <i>Gazette</i> 7 Dec 1990 p. 5979)
<i>State Employment and Skills Development Authority Act 1990</i> s. 46	40 of 1990	26 Nov 1990	22 Mar 1991 (see s. 2 and <i>Gazette</i> 22 Mar 1991 p. 1209)
<i>Soil and Land Conservation Amendment Act 1990</i> s. 17	91 of 1990	17 Dec 1990	Sch. it. 1(a): 3 May 1991 (see s. 2 and <i>Gazette</i> 3 May 1991 p. 1936); Sch. it. 1(b): 28 Oct 1995 (see s. 2 and <i>Gazette</i> 27 Oct 1995 p. 4937)
<i>R & I Bank Act 1990</i> s. 45(1)	73 of 1990	20 Dec 1990	1 Jan 1991 (see s. 2(2) and <i>Gazette</i> 28 Dec 1990 p. 6369)
<i>Building and Construction Industry Training Fund and Levy Collection Act 1990</i> s. 33	76 of 1990	20 Dec 1990	1 Jul 1991 (see s. 2 and <i>Gazette</i> 28 Jun 1991 p. 3101)

Short title	Number and year	Assent	Commencement
<i>Tobacco Control Act 1990</i> s. 35	104 of 1990	2 Jan 1991	8 Feb 1991 (see s. 2(1) and <i>Gazette</i> 8 Feb 1991 p. 575)
<i>State Supply Commission Act 1991</i> s. 35	5 of 1991	6 Jun 1991	20 Sep 1991 (see s. 2 and <i>Gazette</i> 20 Sep 1991 p. 4855)
<i>Director of Public Prosecutions Act 1991</i> s. 36	12 of 1991	21 Jun 1991	3 Feb 1992 (see s. 2 and <i>Gazette</i> 3 Feb 1992 p. 531)
<i>Children's Court of Western Australia Amendment Act (No. 2) 1991</i> s. 22	15 of 1991	21 Jun 1991	9 Aug 1991 (see s. 2 and <i>Gazette</i> 9 Aug 1991 p. 4101)
<i>Human Reproductive Technology Act 1991</i> s. 63	22 of 1991	8 Oct 1991	6 Mar 1992 (see s. 2 and <i>Gazette</i> 6 Mar 1992 p. 1107)
<i>Acts Amendment (Industrial Magistrate's Courts) Act 1991</i> Pt. 2	44 of 1991	17 Dec 1991	3 Jan 1992 (see s. 2 and <i>Gazette</i> 3 Jan 1992 p. 41)
<i>Builders' Registration Amendment Act 1991</i> Pt. 3	60 of 1991	30 Dec 1991	4 Apr 1992 (see s. 2 and <i>Gazette</i> 3 Apr 1992 p. 1461)
<i>East Perth Redevelopment Act 1991</i> s. 59	62 of 1991	30 Dec 1991	1 Jul 1992 (see s. 2 and <i>Gazette</i> 1 Jul 1992 p. 2945)
<i>South West Development Authority Amendment Act 1992</i> s. 12	5 of 1992	14 May 1992	11 Aug 1992 (see s. 2 and <i>Gazette</i> 11 Aug 1992 p. 3959)
<i>Western Australian Financial Institutions Authority Act 1992</i> s. 55	29 of 1992	19 Jun 1992	1 Jul 1992 (see s. 2 and <i>Gazette</i> 26 Jun 1992 p. 2643)
<i>Retirement Villages Act 1992</i> s. 85	34 of 1992	19 Jun 1992	10 Jul 1992 (see s. 2 and <i>Gazette</i> 10 Jul 1992 p. 3185)
<i>Nurses Act 1992</i> s. 84	27 of 1992	23 Jun 1992	29 Oct 1993 (see s. 2 and <i>Gazette</i> 29 Oct 1993 p. 5881)
<i>Western Australian Land Authority Act 1992</i> s. 49	35 of 1992	23 Jun 1992	1 Jul 1992 (see s. 2(2) and <i>Gazette</i> 30 Jun 1992 p. 2869)
<i>Coal Industry Tribunal of Western Australia Act 1992</i> s. 39	37 of 1992	2 Oct 1992	31 Dec 1992 (see s. 2 and <i>Gazette</i> 31 Dec 1992 p. 6311)
<i>Acts Amendment (Parliamentary, Electorate and Gubernatorial Staff) Act 1992</i> Pt. 2	40 of 1992	2 Oct 1992	3 Nov 1992 (see s. 2 and <i>Gazette</i> 3 Nov 1992 p. 5389)

Short title	Number and year	Assent	Commencement
<i>Pilbara Development Commission Act 1992</i> s. 25	59 of 1992	11 Dec 1992	1 Jul 1993 (see s. 2 and <i>Gazette</i> 1 Jul 1993 p. 3209)
<i>Freedom of Information Act 1992</i> Pt. 7	76 of 1992	15 Dec 1992	1 Nov 1993 (see s. 2 and <i>Gazette</i> 29 Oct 1993 p. 5881)
<i>Disability Services Act 1992</i> s. 41	77 of 1992	18 Dec 1992	8 Apr 1993 (see s. 2(1) and <i>Gazette</i> 8 Apr 1993 p. 2033)
Reprint of the Constitution Acts Amendment Act 1899 as at 6 Apr 1993 (includes amendments listed above except those in the <i>Soil and Land Conservation Amendment Act 1990</i> Sch. it. 1(b), the <i>Nurses Act 1992</i> , the <i>Pilbara Development Commission Act 1992</i> , the <i>Freedom of Information Act 1992</i> and the <i>Disability Services Act 1992</i>)			
<i>Local Government (Superannuation) Amendment and Repeal Act 1993</i> s. 15	2 of 1993	18 Aug 1993	1 Jul 1993 (see s. 2)
<i>Rural Adjustment and Finance Corporation Act 1993</i> s. 56	10 of 1993	6 Oct 1993	24 Dec 1993 (see s. 2 and <i>Gazette</i> 24 Dec 1993 p. 6796)
<i>Workplace Agreements Act 1993</i> s. 103	13 of 1993	23 Nov 1993	1 Dec 1993 (see s. 2 and <i>Gazette</i> 30 Nov 1993 p. 6439)
<i>Bee Industry Amendment and Repeal Act 1993</i> s. 20	26 of 1993	15 Dec 1993	4 Feb 1994 (see s. 2 and <i>Gazette</i> 4 Feb 1994 p. 339)
<i>Meat Industry Legislation (Amendment and Repeal) Act 1993</i> s. 11(2)	32 of 1993	16 Dec 1993	21 Sep 1996 (see s. 2(3) and <i>Gazette</i> 20 Sep 1996 p. 4715)
<i>Disability Services Act 1993</i> s. 58	36 of 1993	16 Dec 1993	23 Dec 1993 (see s. 2)
<i>Plant Diseases Amendment Act 1993</i> s. 20	40 of 1993	20 Dec 1993	24 Jun 1994 (see s. 2 and <i>Gazette</i> 24 Jun 1994 p. 2819)
<i>Regional Development Commissions Act 1993</i> s. 44	53 of 1993	22 Dec 1993	8 Apr 1994 (see s. 2 and <i>Gazette</i> 8 Apr 1994 p. 1462)
<i>R & I Bank Amendment Act 1994</i> s. 13	6 of 1994	11 Apr 1994	26 Apr 1994 (see s. 2(2) and <i>Gazette</i> 26 Apr 1994 p. 1743)
<i>Adoption Act 1994</i> s. 145	9 of 1994	15 Apr 1994	1 Jan 1995 (see s. 2 and <i>Gazette</i> 25 Nov 1994 p. 5905)

Constitution Acts Amendment Act 1899

Short title	Number and year	Assent	Commencement
<i>Acts Amendment (Public Sector Management) Act 1994 s. 9</i>	32 of 1994	29 Jun 1994	1 Oct 1994 (see s. 2 and <i>Gazette</i> 30 Sep 1994 p. 4948)
<i>Subiaco Redevelopment Act 1994 s. 67</i>	35 of 1994	8 Jul 1994	24 Aug 1994 (see s. 2 and <i>Gazette</i> 23 Aug 1994 p. 4364)
<i>Perth International Centre for Application of Solar Energy Act 1994 s. 35</i>	36 of 1994	8 Jul 1994	22 Jul 1994 (see s. 2 and <i>Gazette</i> 22 Jul 1994 p. 3727)
<i>Acts Amendment (Coal Mining Industry) Act 1994 s. 21</i>	45 of 1994	22 Sep 1994	22 Sep 1994 (see s. 2(1))
<i>Fish Resources Management Act 1994 s. 264</i>	53 of 1994	2 Nov 1994	1 Oct 1995 (see s. 2 and <i>Gazette</i> 29 Sep 1995 p. 4649)
<i>Mines Safety and Inspection Act 1994 s. 109</i>	62 of 1994	7 Nov 1994	9 Dec 1995 (see s. 2 and <i>Gazette</i> 8 Dec 1995 p. 5935)
<i>Statutes (Repeals and Minor Amendments) Act 1994 s. 4</i>	73 of 1994	9 Dec 1994	9 Dec 1994 (see s. 2)
<i>Energy Corporations (Transitional and Consequential Provisions) Act 1994 s. 109</i>	89 of 1994	15 Dec 1994	1 Jan 1995 (see s. 2 and <i>Gazette</i> 23 Dec 1994 p. 7069)
<i>Taxi Act 1994 s. 50</i>	83 of 1994	20 Dec 1994	10 Jan 1995 (see s. 2 and <i>Gazette</i> 10 Jan 1995 p. 73)
<i>Dairy Industry Amendment Act 1994 s. 92</i>	96 of 1994	5 Jan 1995	2 Feb 1995
<i>Hospitals Amendment Act 1994 s. 18</i>	103 of 1994	11 Jan 1995	3 Feb 1995 (see s. 2 and <i>Gazette</i> 3 Feb 1995 p. 333)
<i>Young Offenders Act 1994 s. 236</i>	104 of 1994	11 Jan 1995	13 Mar 1995 (see s. 2 and <i>Gazette</i> 10 Mar 1995 p. 895)
<i>Planning Legislation Amendment Act (No. 2) 1994 s. 46(5)</i>	84 of 1994	13 Jan 1995	1 Mar 1995 (see s. 2 and <i>Gazette</i> 21 Feb 1995 p. 567)
<i>Industrial Legislation Amendment Act 1995 s. 23</i>	1 of 1995	9 May 1995	9 May 1995 (see s. 2(1))

Short title	Number and year	Assent	Commencement
Reprint of the <i>Constitution Acts Amendment Act 1899</i> as at 17 May 1995 (includes amendments listed above except those in the <i>Soil and Land Conservation Amendment Act 1990</i> Sch. it. 1(b), the <i>Meat Industry Legislation (Amendment and Repeal) Act 1993</i> , the <i>Fish Resources Management Act 1994</i> and the <i>Mines Safety and Inspection Act 1994</i>)			
<i>Marketing of Potatoes Amendment Act 1995</i> s. 58(1)	11 of 1995	30 Jun 1995	4 Sep 1995 (see s. 2 and <i>Gazette</i> 1 Sep 1995 p. 4063)
<i>Bank of Western Australia Act 1995</i> s. 44	14 of 1995	4 Jul 1995	1 Dec 1995 (see s. 2 and <i>Gazette</i> 29 Nov 1995 p. 5529)
<i>Agricultural Practices (Disputes) Act 1995</i> s. 23	26 of 1995	6 Sep 1995	26 Jun 1996 (see s. 2 and <i>Gazette</i> 25 Jun 1996 p. 2901)
<i>Caravan Parks and Camping Grounds Act 1995</i> s. 33	34 of 1995	29 Sep 1995	1 Jul 1997 (see s. 2 and <i>Gazette</i> 20 Jun 1997 p. 2805)
<i>Water Agencies Restructure (Transitional and Consequential Provisions) Act 1995</i> s. 188	73 of 1995	27 Dec 1995	1 Jan 1996 (see s. 2(2) and <i>Gazette</i> 29 Dec 1995 p. 6291)
<i>Health Services (Conciliation and Review) Act 1995</i> s. 80(1)	75 of 1995 (as amended by No. 57 of 1997 s. 70)	9 Jan 1996	16 Aug 1996 (see s. 2(1) and <i>Gazette</i> 16 Aug 1996 p. 4007)
<i>Sentencing (Consequential Provisions) Act 1995</i> Pt. 13	78 of 1995	16 Jan 1996	4 Nov 1996 (see s. 2 and <i>Gazette</i> 25 Oct 1996 p. 5632)
<i>Coroners Act 1996</i> s. 61	2 of 1996	24 May 1996	7 Apr 1997 (see s. 2 and <i>Gazette</i> 18 Mar 1997 p. 1529)
<i>Local Government (Consequential Amendments) Act 1996</i> s. 4	14 of 1996	28 Jun 1996	1 Jul 1996 (see s. 2)
<i>Fruit Growing Industry (Trust Fund) Repeal Act 1996</i> s. 8(1)	15 of 1996	28 Jun 1996	1 Sep 1996 (see s. 2 and <i>Gazette</i> 23 Aug 1996 p. 4079)
<i>Censorship Act 1996</i> s. 152(3)	40 of 1996	10 Oct 1996	5 Nov 1996 (see s. 2 and <i>Gazette</i> 5 Nov 1996 p. 5845)
<i>Vocational Education and Training Act 1996</i> s. 71	42 of 1996	16 Oct 1996	1 Jan 1997 (see s. 2 and <i>Gazette</i> 12 Nov 1996 p. 6301)

Short title	Number and year	Assent	Commencement
<i>Acts Amendment (ICWA) Act 1996 s. 38</i>	45 of 1996	25 Oct 1996	1 Oct 1997 (see s. 2 and <i>Gazette</i> 23 Sep 1997 p. 5357)
<i>Mental Health (Consequential Provisions) Act 1996 Pt. 3</i>	69 of 1996	13 Nov 1996	13 Nov 1997 (see s. 2)
<i>Road Traffic Amendment Act 1996 Pt. 3 Div. 1</i>	76 of 1996	14 Nov 1996	1 Feb 1997 (see s. 2 and <i>Gazette</i> 31 Jan 1997 p. 613)
Reprint of the Constitution Acts Amendment Act 1899 as at 22 Jan 1997 (includes amendments listed above except those in the <i>Caravan Parks and Camping Grounds Act 1995</i> , the <i>Coroners Act 1996</i> , the <i>Acts Amendment (ICWA) Act 1996</i> , the <i>Mental Health (Consequential Provisions) Act 1996</i> and the <i>Road Traffic Amendment Act 1996</i>)			
<i>Curriculum Council Act 1997 s. 35</i>	17 of 1997	8 Jul 1997	1 Aug 1997 (see s. 2 and <i>Gazette</i> 25 Jul 1997 p. 3907)
<i>Professional Standards Act 1997 s. 58</i>	22 of 1997	18 Sep 1997	18 Apr 1998 (see s. 2 and <i>Gazette</i> 17 Apr 1998 p. 2045)
<i>Acts Amendment (Land Administration) Act 1997 Pt. 14</i>	31 of 1997	3 Oct 1997	30 Mar 1998 (see s. 2 and <i>Gazette</i> 27 Mar 1998 p. 1765)
<i>Statutes (Repeals and Minor Amendments) Act 1997 s. 37</i>	57 of 1997	15 Dec 1997	15 Dec 1997 (see s. 2(1))
<i>Osteopaths Act 1997 s. 97</i>	58 of 1997	15 Dec 1997	22 Dec 1999 (see s. 2 and <i>Gazette</i> 21 Dec 1999 p. 6393)
<i>Country Housing Act 1998 s. 48</i>	4 of 1998	14 Apr 1998	1 Jul 1998 (see s. 2 and <i>Gazette</i> 30 Jun 1998 p. 3557)
<i>Statutes (Repeals and Minor Amendments) Act (No. 2) 1998 s. 76</i>	10 of 1998	30 Apr 1998	30 Apr 1998 (see s. 2(1))
<i>Industry and Technology Development Act 1998 s. 34(1)</i>	13 of 1998	20 May 1998	1 Jul 1998 (see s. 2 and <i>Gazette</i> 26 Jun 1998 p. 3369)
<i>Western Australian Greyhound Racing Association Amendment Act 1998 s. 20</i>	23 of 1998	30 Jun 1998	1 Aug 1998 (see s. 2 and <i>Gazette</i> 21 Jul 1998 p. 3825)
<i>WADC and WA Exim Corporation Repeal Act 1998 s. 8</i>	30 of 1998	30 Jun 1998	30 Jun 1998 (see s. 2)

Short title	Number and year	Assent	Commencement
<i>Fire and Emergency Services Authority of Western Australia (Consequential Provisions) Act 1998 s. 38</i>	42 of 1998	4 Nov 1998	1 Jan 1999 (see s. 2 and <i>Gazette</i> 22 Dec 1998 p. 6833)
<i>Carnarvon Banana Industry (Compensation Trust Fund) Repeal Act 1998 s. 8(1)</i>	45 of 1998	19 Nov 1998	19 Nov 1999 (see s. 2 and <i>Gazette</i> 19 Nov 1999 p. 5789)
<i>Botanic Gardens and Parks Authority Act 1998 s. 56</i>	53 of 1998	7 Dec 1998	1 Jul 1999 (see s. 2 and <i>Gazette</i> 30 Jun 1999 p. 2879)
<i>Gas Pipelines Access (Western Australia) Act 1998 Sch. 3 Div. 1</i>	65 of 1998	15 Jan 1999	9 Feb 1999 (see s. 2 and <i>Gazette</i> 8 Feb 1999 p. 441)
<i>Port Authorities (Consequential Provisions) Act 1999 s. 21 (Sch. 1-8)</i>	5 of 1999	13 Apr 1999	Sch. 1, 3-8: 14 Aug 1999 (see s. 2 and <i>Gazette</i> 13 Aug 1999 p. 3823); Sch. 2: 1 Jan 2000 (see s. 2(9) and <i>Gazette</i> 24 Dec 1999 p. 6871)
<i>Marketing of Meat Amendment Act 1999 s. 16</i>	8 of 1999	13 Apr 1999	13 Aug 1999 (see s. 2(2) and <i>Gazette</i> 13 Aug 1999 p. 3823)
Reprint of the Constitution Acts Amendment Act 1899 as at 15 Apr 1999 (includes amendments listed above except those in the <i>Osteopaths Act 1997</i> , the <i>Carnarvon Banana Industry (Compensation Trust Fund) Repeal Act 1998</i> , the <i>Botanic Gardens and Parks Authority Act 1998</i> , the <i>Port Authorities (Consequential Provisions) Act 1999</i> and the <i>Marketing of Meat Amendment Act 1999</i>)			
<i>Acts Amendment and Repeal (Financial Sector Reform) Act 1999 s. 67</i>	26 of 1999	29 Jun 1999	1 Jul 1999 (see s. 2(1) and <i>Gazette</i> 30 Jun 1999 p. 2905)
<i>Workers' Compensation and Rehabilitation Amendment Act 1999 s. 61</i>	34 of 1999	5 Oct 1999	15 Oct 1999 (see s. 2(2) and <i>Gazette</i> 15 Oct 1999 p. 4889)
<i>School Education Act 1999 s. 247</i>	36 of 1999	2 Nov 1999	1 Jan 2001 (see s. 2 and <i>Gazette</i> 29 Dec 2000 p. 7904)
<i>Water Services Coordination Amendment Act 1999 s. 11(2)</i>	39 of 1999	9 Nov 1999	19 Jun 2000 (see s. 2 and <i>Gazette</i> 16 Jun 2000 p. 2939)

Short title	Number and year	Assent	Commencement
<i>Midland Redevelopment Act 1999 s. 70</i>	38 of 1999	11 Nov 1999	1 Jan 2000 (see s. 2 and <i>Gazette</i> 31 Dec 1999 p. 7059)
<i>Disability Services Amendment Act 1999 s. 28(1)</i>	44 of 1999	25 Nov 1999	25 Nov 1999 (see s. 2)
<i>Prisons Amendment Act 1999 s. 20</i>	43 of 1999	8 Dec 1999	18 Jun 2000 (see s. 2(3) and (4) and <i>Gazette</i> 16 Jun 2000 p. 2939)
<i>Gas Corporation (Business Disposal) Act 1999 s. 100</i>	58 of 1999	24 Dec 1999	16 Dec 2000 (see s. 2(5) and <i>Gazette</i> 15 Dec 2000 p. 7201)
<i>Gender Reassignment Act 2000 s. 29(2)</i>	2 of 2000	12 Apr 2000	19 Dec 2001 (see s. 2 and <i>Gazette</i> 18 Dec 2001 p. 6489)
Reprint of the <i>Constitution Acts Amendment Act 1899</i> as at 19 May 2000 (includes amendments listed above except those in the <i>School Education Act 1999</i> , the <i>Water Services Coordination Amendment Act 1999</i> , the <i>Prisons Amendment Act 1999</i> , the <i>Gas Corporation (Business Disposal) Act 1999</i> and the <i>Gender Reassignment Act 2000</i>)			
<i>Horticultural Produce Commission Amendment Act 2000 s. 33(1)</i>	20 of 2000	30 Jun 2000	11 Aug 2000 (see s. 2 and <i>Gazette</i> 11 Aug 2000 p. 4691)
<i>Statutes (Repeals and Minor Amendments) Act 2000 s. 3(6), 9 and 14(13)</i>	24 of 2000	4 Jul 2000	4 Jul 2000 (see s. 2)
<i>Dairy Industry and Herd Improvement Legislation Repeal Act 2000 s. 17</i>	25 of 2000	5 Jul 2000	14 Jul 2000 (see s. 2(2) and <i>Gazette</i> 14 Jul 2000 p. 3841)
<i>Forest Products Act 2000 s. 72</i>	34 of 2000	10 Oct 2000	16 Nov 2000 (see s. 2 and <i>Gazette</i> 15 Nov 2000 p. 6275)
<i>Conservation and Land Management Amendment Act 2000 s. 52(1)</i>	35 of 2000	10 Oct 2000	16 Nov 2000 (see s. 2 and <i>Gazette</i> 15 Nov 2000 p. 6275)
<i>Electoral Amendment Act 2000 s. 23 and 56</i>	36 of 2000	10 Oct 2000	21 Oct 2000 (see s. 2(1) and <i>Gazette</i> 20 Oct 2000 p. 5899)
<i>State Superannuation (Transitional and Consequential Provisions) Act 2000 s. 35</i>	43 of 2000	2 Nov 2000	17 Feb 2001 (see s. 2(1) and <i>Gazette</i> 16 Feb 2001 p. 903)

Short title	Number and year	Assent	Commencement
<i>Railways (Access) Amendment Act 2000</i> s. 10	55 of 2000	28 Nov 2000	28 Nov 2000 (see s. 2)
<i>Rural Business Development Corporation Act 2000</i> s. 44	72 of 2000	6 Dec 2000	20 Dec 2000 (see s. 2 and <i>Gazette</i> 19 Dec 2000 p. 7273)
<i>Building Legislation Amendment Act 2000</i> s. 61	76 of 2000	7 Dec 2000	1 Aug 2001 (see s. 2 and <i>Gazette</i> 31 Jul 2001 p. 3907)
Reprint of the Constitution Acts Amendment Act 1899 as at 8 Jun 2001 (includes amendments listed above except those in the <i>Gender Reassignment Act 2000</i> and the <i>Building Legislation Amendment Act 2000</i>)			
<i>Building Societies Amendment Act 2001</i> s. 47	12 of 2001	13 Jul 2001	13 Jul 2001 (see s. 2)
<i>Zoological Parks Authority Act 2001</i> s. 47	24 of 2001	26 Nov 2001	22 May 2002 (see s. 2 and <i>Gazette</i> 10 May 2002 p. 2445)
<i>Armada Redevelopment Act 2001</i> s. 69	25 of 2001	26 Nov 2001	23 Mar 2002 (see s. 2 and <i>Gazette</i> 22 Mar 2002 p. 1651)
<i>Road Safety Council Act 2002</i> s. 15	5 of 2002	4 Jun 2002	1 Jul 2002 (see s. 2(1) and <i>Gazette</i> 1 Jul 2002 p. 3205)
<i>Labour Relations Reform Act 2002</i> s. 109	20 of 2002	8 Jul 2002	15 Sep 2002 (see s. 2 and <i>Gazette</i> 6 Sep 2002 p. 4487)
<i>Planning Appeals Amendment Act 2002</i> s. 22	24 of 2002	24 Sep 2002	18 Apr 2003 (see s. 2 and <i>Gazette</i> 17 Apr 2003 p. 1243)
<i>Grain Marketing Act 2002</i> s. 47	30 of 2002	25 Oct 2002	31 Oct 2002 (see s. 2 and <i>Gazette</i> 30 Oct 2002 p. 5351)
<i>Adoption Amendment Act (No. 2) 2003</i> s. 87	8 of 2003	1 Apr 2003	1 Jun 2003 (see s. 2(1) and <i>Gazette</i> 20 May 2003 p. 1783)
<i>Censorship Amendment Act 2003</i> s. 43	30 of 2003	26 May 2003	1 Jul 2003 (see s. 2 and <i>Gazette</i> 27 Jun 2003 p. 2383)
<i>Public Transport Authority Act 2003</i> s. 202	31 of 2003	26 May 2003	1 Jul 2003 (see s. 2(1) and <i>Gazette</i> 27 Jun 2003 p. 2384)
<i>Racing and Gambling Legislation Amendment and Repeal Act 2003</i> s. 20, 50, 68(1), 116(1) and 221(1)	35 of 2003	26 Jun 2003	s. 20, 68(1), and 221(1): 1 Aug 2003 (see s. 2 and <i>Gazette</i> 29 Jul 2003 p. 3259); s. 50 and 116(1): 30 Jan 2004 (see s. 2 and <i>Gazette</i> 30 Jan 2004 p. 397)

Short title	Number and year	Assent	Commencement
<i>Corruption and Crime Commission Act 2003</i> s. 62 ⁴⁶	48 of 2003	3 Jul 2003	1 Jan 2004 (see s. 2 and <i>Gazette</i> 30 Dec 2003 p. 5723)
<i>Sentencing Legislation Amendment and Repeal Act 2003</i> s. 29(3)	50 of 2003	9 Jul 2003	31 Aug 2003 (see s. 2 and <i>Gazette</i> 29 Aug 2003 p. 3833)
Reprint 12: The Constitution Acts Amendment Act 1899 as at 3 Oct 2003 (includes amendments listed above except those in the <i>Racing and Gambling Legislation Amendment and Repeal Act 2003</i> s. 50 and 116(1) and the <i>Corruption and Crime Commission Act 2003</i>)			
<i>Economic Regulation Authority Act 2003</i> Sch. 2 cl. 6	67 of 2003	5 Dec 2003	1 Jan 2004 (see s. 2 and <i>Gazette</i> 30 Dec 2003 p. 5723)
<i>Motor Vehicle Dealers Amendment Act 2003</i> s. 24 ⁵¹	73 of 2003	15 Dec 2003	22 Dec 2004 (see s. 2 and <i>Gazette</i> 21 Dec 2004 p. 6133)
<i>Inspector of Custodial Services Act 2003</i> s. 56(1)	75 of 2003	15 Dec 2003	15 Dec 2003 (see s. 2)
<i>Criminal Injuries Compensation Act 2003</i> s. 73	77 of 2003	15 Dec 2003	1 Jan 2004 (see s. 2 and <i>Gazette</i> 30 Dec 2003 p. 5722)
<i>Western Australian College of Teaching Act 2004</i> s. 88	8 of 2004	10 Jun 2004	15 Sep 2004 (see s. 2 and <i>Gazette</i> 3 Sep 2004 p. 3849)
<i>Marketing of Eggs Amendment Act 2004</i> s. 7	20 of 2004	26 Aug 2004	2 Jul 2005 (see s. 2(2) and <i>Gazette</i> 28 Jun 2005 p. 2895)
<i>Children and Community Services Act 2004</i> Sch. 2 cl. 5	34 of 2004	20 Oct 2004	1 Mar 2006 (see s. 2 and <i>Gazette</i> 14 Feb 2006 p. 695)
<i>Pig, Potato and Poultry Industries (Compensation Legislation) Repeal Act 2004</i> s. 16	40 of 2004	3 Nov 2004	1 Feb 2005 (see s. 2 and <i>Gazette</i> 7 Jan 2005 p. 53)
<i>Workers' Compensation Reform Act 2004</i> s. 157	42 of 2004	9 Nov 2004	4 Jan 2005 (see s. 2 and <i>Gazette</i> 31 Dec 2004 p. 7131)
<i>Acts Amendment (Court of Appeal) Act 2004</i> s. 37	45 of 2004	9 Nov 2004	1 Feb 2005 (see s. 2 and <i>Gazette</i> 14 Jan 2005 p. 163)

Short title	Number and year	Assent	Commencement
<i>Finance Brokers Control Amendment Act 2004</i> s. 79	53 of 2004	18 Nov 2004	31 Oct 2005 (see s. 2 and <i>Gazette</i> 28 Oct 2005 p. 4839)
<i>Disability Services Amendment Act 2004</i> s. 35	57 of 2004	18 Nov 2004	15 Dec 2004 (see s. 2 and <i>Gazette</i> 14 Dec 2004 p. 5999)
<i>State Administrative Tribunal Act 2004</i> s. 174	54 of 2004	23 Nov 2004	1 Jan 2005 (see s. 2 and <i>Gazette</i> 31 Dec 2004 p. 7129)
<i>Courts Legislation Amendment and Repeal Act 2004</i> s. 141	59 of 2004	23 Nov 2004	1 May 2005 (see s. 2 and <i>Gazette</i> 31 Dec 2004 p. 7128)
<i>State Administrative Tribunal (Conferral of Jurisdiction) Amendment and Repeal Act 2004</i> s. 1324 ⁵²	55 of 2004	24 Nov 2004	1 Jan 2005 (see s. 2 and <i>Gazette</i> 31 Dec 2004 p. 7130)
<i>Criminal Law Amendment (Simple Offences) Act 2004</i> Pt. 5 ⁵³	70 of 2004	8 Dec 2004	31 May 2005 (see s. 2 and <i>Gazette</i> 14 Jan 2005 p. 163)
<i>Architects Act 2004</i> s. 79	75 of 2004	8 Dec 2004	16 Nov 2005 (see s. 2 and <i>Gazette</i> 15 Nov 2005 p. 5597)
Reprint 13: The Constitution Acts Amendment Act 1899 as at 18 Mar 2005 (includes amendments listed above except those in the <i>Marketing of Eggs Amendment Act 2004</i> , the <i>Children and Community Services Act 2004</i> , the <i>Finance Brokers Control Amendment Act 2004</i> , the <i>Courts Legislation Amendment and Repeal Act 2004</i> , the <i>Criminal Law Amendment (Simple Offences) Act 2004</i> and the <i>Architects Act 2004</i>)			
<i>Electoral Amendment and Repeal Act 2005</i> s. 7	1 of 2005	20 May 2005	20 May 2005 (see s. 2)
<i>Constitution and Electoral Amendment Act 2005</i> s. 3	2 of 2005	23 May 2005	23 May 2005 (see s. 2)
<i>Electricity Corporations Act 2005</i> s. 139	18 of 2005	13 Oct 2005	1 Apr 2006 (see s. 2(2) and <i>Gazette</i> 31 Mar 2006 p. 1153)
<i>Oaths, Affidavits and Statutory Declarations (Consequential Provisions) Act 2005</i> Pt. 4	24 of 2005	2 Dec 2005	1 Jan 2006 (see s. 2 and <i>Gazette</i> 23 Dec 2005 p. 6244)
<i>Psychologists Act 2005</i> Sch. 3 cl. 2	28 of 2005	12 Dec 2005	4 May 2007 (see s. 2 and <i>Gazette</i> 4 May 2007 p. 1963)

Short title	Number and year	Assent	Commencement
<i>Optometrists Act 2005</i> Sch. 3 cl. 2	29 of 2005	12 Dec 2005	20 Apr 2007 (see s. 2 and <i>Gazette</i> 30 Mar 2007 p. 1451)
<i>Podiatrists Act 2005</i> Sch. 3 cl. 2	30 of 2005	12 Dec 2005	30 May 2007 (see s. 2 and <i>Gazette</i> 29 May 2007 p. 2486)
<i>Chiropractors Act 2005</i> Sch. 3 cl. 2	31 of 2005	12 Dec 2005	1 Aug 2007 (see s. 2 and <i>Gazette</i> 31 Jul 2007 p. 3789)
<i>Physiotherapists Act 2005</i> Sch. 3 cl. 2	32 of 2005	12 Dec 2005	23 Feb 2007 (see s. 2 and <i>Gazette</i> 20 Feb 2007 p. 505)
<i>Osteopaths Act 2005</i> Sch. 3 cl. 2	33 of 2005	12 Dec 2005	30 May 2007 (see s. 2 and <i>Gazette</i> 29 May 2007 p. 2486)
<i>Planning and Development (Consequential and Transitional Provisions) Act 2005</i> s. 15	38 of 2005	12 Dec 2005	9 Apr 2006 (see s. 2 and <i>Gazette</i> 21 Mar 2006 p. 1078)
<i>Occupational Therapists Act 2005</i> Sch. 3 cl. 4	42 of 2005	19 Dec 2005	1 Aug 2007 (see s. 2 and <i>Gazette</i> 31 Jul 2007 p. 3789)
<i>Tobacco Products Control Act 2006</i> s. 126	5 of 2006	12 Apr 2006	31 Jul 2006 (see s. 2 and <i>Gazette</i> 25 Jul 2006 p. 2701)
Reprint 14: The Constitution Acts Amendment Act 1899 as at 21 Apr 2006 (includes amendments listed above except those in the <i>Psychologists Act 2005</i> , the <i>Optometrists Act 2005</i> , the <i>Podiatrists Act 2005</i> , the <i>Chiropractors Act 2005</i> , the <i>Physiotherapists Act 2005</i> , the <i>Osteopaths Act 2005</i> , the <i>Occupational Therapists Act 2005</i> and the <i>Tobacco Products Control Act 2006</i>)			
<i>Medical Radiation Technologists Act 2006</i> Sch. 3 cl. 2	21 of 2006	9 Jun 2006	1 Jul 2007 (see s. 2 and <i>Gazette</i> 26 Jun 2007 p. 3013)
<i>Machinery of Government (Miscellaneous Amendments) Act 2006</i> Pt. 15 Div. 1	28 of 2006	26 Jun 2006	1 Jul 2006 (see s. 2 and <i>Gazette</i> 27 Jun 2006 p. 2347)
<i>Parole and Sentencing Legislation Amendment Act 2006</i> s. 89	41 of 2006	22 Sep 2006	28 Jan 2007 (see s. 2 and <i>Gazette</i> 29 Dec 2006 p. 5867)
<i>Perth International Centre for Application of Solar Energy Repeal Act 2006</i> s. 4	43 of 2006	3 Oct 2006	31 Oct 2006

Short title	Number and year	Assent	Commencement
<i>Commissioner for Children and Young People Act 2006</i> s. 65	48 of 2006	4 Oct 2006	10 Dec 2007 (see s. 2 and <i>Gazette</i> 23 Nov 2007 p. 5861)
<i>Nurses and Midwives Act 2006</i> Sch. 3 cl. 3	50 of 2006	6 Oct 2006	19 Sep 2007 (see s. 2 and <i>Gazette</i> 18 Sep 2007 p. 4711)
<i>Parliamentary Legislation Amendment Act 2006</i> Pt. 2	56 of 2006	16 Nov 2006	17 Nov 2006 (see s. 2)
<i>Land Information Authority Act 2006</i> s. 185	60 of 2006	16 Nov 2006	1 Jan 2007 (see s. 2(1) and <i>Gazette</i> 8 Dec 2006 p. 5369)
<i>Electoral Legislation Amendment Act 2006</i> Pt. 2	64 of 2006	8 Dec 2006	5 Mar 2007 (see s. 2(2) and <i>Gazette</i> 2 Mar 2007 p. 689)
<i>Liquor and Gaming Legislation Amendment Act 2006</i> s. 116	73 of 2006	13 Dec 2006	7 May 2007 (see s. 2(2) and <i>Gazette</i> 1 May 2007 p. 1893)
<i>Financial Legislation Amendment and Repeal Act 2006</i> Sch. 1 cl. 30	77 of 2006	21 Dec 2006	1 Feb 2007 (see s. 2(1) and <i>Gazette</i> 19 Jan 2007 p. 137)
<i>Owner-Drivers (Contracts and Disputes) Act 2007</i> s. 58	7 of 2007	6 Jun 2007	1 Aug 2008 (see s. 2 and <i>Gazette</i> 18 Jul 2008 p. 3329)
<i>Chemistry Centre (WA) Act 2007</i> s. 43	10 of 2007	29 Jun 2007	1 Aug 2007 (see s. 2(1) and <i>Gazette</i> 27 Jul 2007 p. 3735)
<i>Child Care Services Act 2007</i> Pt. 7 Div. 2	19 of 2007	3 Jul 2007	10 Aug 2007 (see s. 2(b) and <i>Gazette</i> 9 Aug 2007 p. 4071)
Reprint 15: The Constitution Acts Amendment Act 1899 as at 2 Aug 2007 (includes amendments listed above except those in the <i>Commissioner for Children and Young People Act 2006</i> , the <i>Nurses and Midwives Act 2006</i> , the <i>Owner-Drivers (Contracts and Disputes) Act 2007</i> and the <i>Child Care Services Act 2007</i>)			
<i>Biosecurity and Agriculture Management (Repeal and Consequential Provisions) Act 2007</i> s. 22, 35 and 51	24 of 2007	12 Oct 2007	s. 51: 21 Feb 2009 (see s. 2(1) and <i>Gazette</i> 20 Feb 2009 p. 353); s. 35: 18 Dec 2010 (see s. 2(1) and <i>Gazette</i> 17 Dec 2010 p. 6349); s. 22: 1 May 2013 (see s. 2(2) and <i>Gazette</i> 2 Feb 2013 p. 823)
<i>Waste Avoidance and Resource Recovery Act 2007</i> Sch. 4 cl. 1	36 of 2007	21 Dec 2007	1 Jul 2008 (see s. 2(b) and <i>Gazette</i> 20 Jun 2008 p. 2705)

Short title	Number and year	Assent	Commencement
<i>Water Resources Legislation Amendment Act 2007</i> s. 192	38 of 2007	21 Dec 2007	1 Feb 2008 (see s. 2(2) and <i>Gazette</i> 31 Jan 2008 p. 251)
<i>Legal Profession Act 2008</i> s. 650	21 of 2008	27 May 2008	1 Mar 2009 (see s. 2(b) and <i>Gazette</i> 27 Feb 2009 p. 511)
<i>Medical Practitioners Act 2008</i> Sch. 3 cl. 9	22 of 2008	27 May 2008	1 Dec 2008 (see s. 2 and <i>Gazette</i> 25 Nov 2008 p. 4989)
<i>Eastern Goldfields Transport Board Repeal Act 2008</i> s. 12	28 of 2008	1 Jul 2008	29 Jul 2008
Reprint 16: The Constitution Acts Amendment Act 1899 as at 16 Jan 2009 (includes amendments listed above except those in the <i>Biosecurity and Agriculture Management (Repeal and Consequential Provisions) Act 2007</i> and the <i>Legal Profession Act 2008</i>)			
<i>Statutes (Repeals and Miscellaneous Amendments) Act 2009</i> s. 37	8 of 2009	21 May 2009	22 May 2009 (see s. 2(b))
<i>National Gas Access (WA) Act 2009</i> s. 68	16 of 2009	1 Sep 2009	1 Jan 2010 (see s. 2(b) and <i>Gazette</i> 31 Dec 2009 p. 5327)
<i>Acts Amendment (Bankruptcy) Act 2009</i> s. 20	18 of 2009	16 Sep 2009	17 Sep 2009 (see s. 2(b))
<i>Royalties for Regions Act 2009</i> Pt. 5	41 of 2009	3 Dec 2009	17 Jul 2010 (see s. 2(b) and <i>Gazette</i> 16 Jul 2010 p. 3357)
<i>Standardisation of Formatting Act 2010</i> s. 14, 43(2), 44(2) and 51	19 of 2010	28 Jun 2010	11 Sep 2010 (see s. 2(b) and <i>Gazette</i> 10 Sep 2010 p. 4341)
<i>Grain Marketing Repeal Act 2010</i> s. 4	30 of 2010	25 Aug 2010	27 Oct 2010 (see s. 2(b) and <i>Gazette</i> 26 Oct 2010 p. 5289)
<i>Pharmacy Act 2010</i> Pt. 8 Div. 1	32 of 2010	26 Aug 2010	18 Oct 2010 (see s. 2(b) and <i>Gazette</i> 1 Oct 2010 p. 5076)
<i>Health and Disability Services Legislation Amendment Act 2010</i> s. 55	33 of 2010	30 Aug 2010	30 Nov 2010 (see s. 2(b) and <i>Gazette</i> 17 Sep 2010 p. 4757)

Short title	Number and year	Assent	Commencement
<i>Health Practitioner Regulation National Law (WA) Act 2010</i> Pt. 5 Div. 10	35 of 2010	30 Aug 2010	s. 43, 44(2)-(6), (8) and (10)-(15): 18 Oct 2010 (see s. 2(b) and <i>Gazette</i> 1 Oct 2010 p. 5075-6); s. 44(1), (7) and (9): 1 Jul 2012 (see s. 2(b) and <i>Gazette</i> 19 Jun 2012 p. 2631)
<i>Public Sector Reform Act 2010</i> s. 73	39 of 2010	1 Oct 2010	1 Dec 2010 (see s. 2(b) and <i>Gazette</i> 5 Nov 2010 p. 5563)
<i>Acts Amendment (Fair Trading) Act 2010</i> s. 191	58 of 2010	8 Dec 2010	s. 191(1) and (2): 1 Jan 2011 (see s. 2(c) and <i>Gazette</i> 24 Dec 2010 p. 6805); s. 191(3): 1 Jul 2011 (see s. 2(c) and <i>Gazette</i> 7 Jun 2011 p. 2057)
Reprint 17: The Constitution Acts Amendment Act 1899 as at 11 Feb 2011 (includes amendments listed above except those in the <i>Biosecurity and Agriculture Management (Repeal and Consequential Provisions) Act 2007</i> s. 22, the <i>Health Practitioner Regulation National Law (WA) Act 2010</i> s. 44(1), (7) and (9) and the <i>Acts Amendment (Fair Trading) Act 2010</i> s. 191(3))			
<i>Building Services (Complaint Resolution and Administration) Act 2011</i> s. 127	16 of 2011	25 May 2011	29 Aug 2011 (see s. 2(b) and <i>Gazette</i> 26 Aug 2011 p. 3475)
<i>Building Services (Registration) Act 2011</i> s. 155	19 of 2011	22 Jun 2011	s. 155 (except to the extent that it deletes the item relating to The Municipal Building Surveyors Examination Committee): 29 Aug 2011 (see s. 2(b) and <i>Gazette</i> 26 Aug 2011 p. 3475-6); s. 155(2) (the item relating to The Municipal Building Surveyors Examination Committee): 2 Apr 2012 (see s. 2(b) and <i>Gazette</i> 30 Mar 2012 p. 1549)
<i>Building Act 2011</i> s. 160	24 of 2011	11 Jul 2011	2 Apr 2012 (see s. 2(b) and <i>Gazette</i> 13 Mar 2012 p. 1033)
<i>Curriculum Council Amendment Act 2011</i> Pt. 3 Div. 1	37 of 2011	13 Sep 2011	1 Mar 2012 (see s. 2(b) and <i>Gazette</i> 28 Feb 2012 p. 841)

Short title	Number and year	Assent	Commencement
<i>Metropolitan Redevelopment Authority Act 2011</i> s. 136	45 of 2011	12 Oct 2011	31 Dec 2011 (see s. 2(b) and <i>Gazette</i> 30 Dec 2011 p. 5573)
<i>Statutes (Repeals and Minor Amendments) Act 2011</i> s. 4	47 of 2011	25 Oct 2011	26 Oct 2011 (see s. 2(b))
<i>Agricultural Practices (Disputes) Repeal Act 2011</i> s. 3	54 of 2011	9 Nov 2011	7 Dec 2011 (see note under s. 1)
<i>Electoral and Constitution Amendment Act 2011</i> Pt. 3	49 of 2011	11 Nov 2011	21 Dec 2011 (see s. 2(b) and <i>Gazette</i> 20 Dec 2011 p. 5373)
Reprint 18: The Constitution Acts Amendment Act 1899 as at 1 Jun 2012 (includes amendments listed above except those in the <i>Biosecurity and Agriculture Management (Repeal and Consequential Provisions) Act 2007</i> s. 22 and the <i>Health Practitioner Regulation National Law (WA) Act 2010</i> s. 44(1), (7) and (9))			
<i>Teacher Registration Act 2012</i> s. 164	16 of 2012	3 Jul 2012	7 Dec 2012 (see s. 2(b) and <i>Gazette</i> 16 Nov 2012 p. 5637)
<i>Fire and Emergency Services Legislation Amendment Act 2012</i> Pt. 7 Div. 1	22 of 2012	29 Aug 2012	1 Nov 2012 (see s. 2(b) and <i>Gazette</i> 31 Oct 2012 p. 5255)
<i>Water Services Legislation Amendment and Repeal Act 2012</i> s. 208	25 of 2012	3 Sep 2012	18 Nov 2013 (see s. 2(b) and <i>Gazette</i> 14 Nov 2013 p. 5028)
<i>Mining Rehabilitation Fund Act 2012</i> Pt. 6	33 of 2012	5 Nov 2012	1 Jul 2013 (see s. 2(b) and <i>Gazette</i> 21 Jun 2013 p. 2445)
Reprint 19: The Constitution Acts Amendment Act 1899 as at 12 Jul 2013 (includes amendments listed above except those in the <i>Water Services Legislation Amendment and Repeal Act 2012</i>)			
<i>Minerals Research Institute of Western Australia Act 2013</i> s. 76	23 of 2013	18 Dec 2013	1 Feb 2014 (see s. 2(b) and <i>Gazette</i> 14 Jan 2014 p. 43)
<i>Electricity Corporations Amendment Act 2013</i> s. 37	25 of 2013	18 Dec 2013	1 Jan 2014 (see s. 2(c) and <i>Gazette</i> 27 Dec 2013 p. 6465)
<i>Ports Legislation Amendment Act 2014</i> s. 44	9 of 2014	20 May 2014	s. 44(1) and (3)-(5): 1 Jul 2014 (see s. 2(1)(c) and <i>Gazette</i> 20 Jun 2014 p. 2023); s. 44(2): 1 Oct 2014 (see s. 2(1)(c) and <i>Gazette</i> 19 Sep 2014 p. 3329)

Short title	Number and year	Assent	Commencement
<i>Consumer Protection Legislation Amendment Act 2014</i> Pt. 13 Div. 2	23 of 2014	9 Oct 2014	19 Nov 2014 (see s. 2(b) and <i>Gazette</i> 18 Nov 2014 p. 4315)
<i>Corruption and Crime Commission Amendment (Misconduct) Act 2014</i> s. 39	35 of 2014	9 Dec 2014	1 Jul 2015 (see s. 2(b) and <i>Gazette</i> 26 Jun 2015 p. 2235)
<i>Alcohol and Drug Authority Amendment Act 2015</i> s. 14	3 of 2015	25 Feb 2015	1 Jul 2015 (see s. 2(b) and <i>Gazette</i> 10 Apr 2015 p. 1249)

^{1a} On the date as at which this compilation was prepared, provisions referred to in the following table had not come into operation and were therefore not included in this compilation. For the text of the provisions see the endnotes referred to in the table.

Provisions that have not come into operation

Short title	Number and year	Assent	Commencement
<i>Native Title (State Provisions) Act 1999</i> s. 7.3 (Sch. 2 Div. 2) ⁵⁴	60 of 1999	10 Jan 2000	Operative on earliest of commencement of Pt. 2 (except s. 2.2), Pt. 3 (except s. 3.1) and Pt. 4
<i>Medicines and Poisons Act 2014</i> s. 183 ⁵⁵	13 of 2014	2 Jul 2014	To be proclaimed (see s. 2(b))
<i>Mental Health Legislation Amendment Act 2014</i> Pt. 4 Div. 4 Subdiv. 4 ⁵⁷ ⁵⁶	25 of 2014	3 Nov 2014	To be proclaimed (see s. 2(b))
<u><i>Conservation and Land Management Amendment Act 2015</i> s. 72⁵⁷</u>	<u>28 of 2015</u>	<u>19 Oct 2015</u>	<u>To be proclaimed (see s. 2(b))</u>

² Repealed by the *Electoral Act 1904*, which was repealed by the *Electoral Act 1907*.

³ *Parliamentary Privileges Act 1891* (54 Vict. No. 4).

⁴ Relevant provisions deleted by the *Health Amendment Act 1985*.

⁵ Repealed by the *Acts Amendment and Repeal (Environmental Protection) Act 1986*.

⁶ Repealed by the *Honey Pool Repeal Act 1991*.

- ⁷ Repealed by the *Acts Amendment (Occupational Health, Safety and Welfare) Act 1987*.
- ⁸ Under the *Gaming and Wagering Commission Act 1987* s. 112 the Casino Control Committee was merged with the Gaming Commission of Western Australia (which is now the Gaming and Wagering Commission of Western Australia). Under s. 112(2) of that Act a reference to the Casino Control Committee in a written law passed or made before 4 Mar 1988 is, unless the context is such that it would be inappropriate so to do, read and construed as a reference to the Commission.
- ⁹ Repealed by the *Statutes (Repeals and Minor Amendments) Act 1997*.
- ¹⁰ The *Chicken Meat Industry Act 1977* expired 31 Dec 2010 (see *Gazette* 19 Dec 2003 p. 5140).
- ¹¹ Under the *Environmental Protection Act 1986* Sch. 3 cl. 20, a reference to the Conservation and Environment Council shall be construed as a reference to the Environmental Protection Authority unless the context is such that it would be incorrect or inappropriate.
- ¹² Repealed by the *Acts Amendment and Repeal (Environmental Protection) Act 1986*.
- ¹³ Repealed by the *Acts Amendment and Repeal (Statutory Bodies) Act 1985*.
- ¹⁴ Relevant provisions amended by the *Soil and Land Conservation Amendment Act 1988*. Committees are now land conservation district committees.
- ¹⁵ Under the *Environmental Protection Act 1986* Sch. 3 cl. 20, a reference to an environmental appeal board shall be construed as a reference to an appeals committee.
- ¹⁶ The Authority continued in existence under the *Environmental Protection Act 1986* s. 7(1).
- ¹⁷ The *Hairdressers Registration Act 1946* expired on 13 Mar 2012 (see *Gazette* 13 Mar 2012 p. 1041).
- ¹⁸ Repealed by the *General Insurance Brokers and Agents Act Repeal Act 1986*.
- ¹⁹ The Land Valuers Licensing Board was abolished on 1 Jul 2011. The *Land Valuers Licensing Act 1978* s. 38 and 39 read as follows:

38. Former Board abolished

Subject to sections 44 and 45, at the beginning of the commencement day, the former Board is abolished and its members go out of office.

39. References to former Board or Registrar

If in a written law or other document or instrument there is a reference to the former Board or the former Registrar, that

reference may, where the context so requires, be read as if it had been amended to be a reference to the Commissioner.

- ²⁰ Repealed by the *Legislative Review and Advisory Committee Repeal Act 1987*.
- ²¹ Relevant provisions deleted by the *Occupational Safety and Health Legislation Amendment and Repeal Act 2004* s. 115. Committee replaced by Mining Industry Advisory Committee established under the *Occupational Safety and Health Act 1984* s. 14A.
- ²² Repealed by the *Minerals and Energy Research Act 1987*.
- ²³ The Motor Vehicle Industry Board was abolished on 1 Jul 2011. The *Motor Vehicle Dealers Act 1973* s. 58 and 59 read as follows:

58. Former Board abolished

Subject to sections 63 and 64, at the beginning of the commencement day, the former Board is abolished and its members go out of office.

59. References to former Board

If in a written law or other document or instrument there is a reference to the former Board, that reference may, where the context so requires, be read as if it had been amended to be a reference to the Commissioner.

- ²⁴ Repealed by the *Statute Law Revision Act 2006* s. 3(1).
- ²⁵ Repealed by the *Conservation and Land Management Act 1984*.
- ²⁶ Now titled the Geographic Names Committee and responsible to the Minister for Lands.
- ²⁷ The Pastoral Appraisalment Board was superseded by the Pastoral Board — see the *Land Act 1933* s. 98. The *Land Act 1933* was subsequently repealed by the *Land Administration Act 1997* s. 281. Section 94 of that Act establishes the Pastoral Lands Board of Western Australia.
- ²⁸ Repealed by the *School Education Act 1999*.
- ²⁹ The Real Estate and Business Agents Supervisory Board was abolished on 1 Jul 2011. The *Real Estate and Business Agents Act 1978* s. 149 and 150 read as follows:

149. Former Board abolished

Subject to sections 156 and 157, at the beginning of the commencement day, the former Board is abolished and its members go out of office.

150. References to the former Board

If in a written law or other document or instrument there is a reference to the former Board, that reference may, where the context so requires, be read as if it had been amended to be a reference to the Commissioner.

³⁰ The *Mines Regulation Act Regulations 1976* r. 2.7 was repealed by the *Mines Regulation Amendment Regulations 1990* in *Gazette* 15 Mar 1991 p. 1167.

³¹ The Settlement Agents Supervisory Board was abolished on 1 Jul 2011. The *Settlement Agents Act 1981* s. 125 and 126 read as follows:

125. Former Board abolished

Subject to sections 132 and 133, at the beginning of the commencement day, the former Board is abolished and its members go out of office.

126. References to the former Board

If in a written law or other document or instrument there is a reference to the former Board, that reference may, where the context so requires, be read as if it had been amended to be a reference to the Commissioner.

³² Relevant provisions deleted by the *Solar Energy Research Amendment Act 1987* and Act expired 30 Jun 1988.

³³ Repealed by the *Censorship Act 1996*, now known as the *Classification (Publications, Films and Computer Games) Enforcement Act 1996*.

³⁴ Repealed by the *Acts Amendment and Repeal (Transport Co-ordination) Act 1985*.

³⁵ Repealed by the *Cemeteries Act 1986*. The former body corporate continued under the name “Karrakatta Cemetery Board” — see Sch. 2 cl. 4 of that Act.

³⁶ This Council was not in existence at the date of this reprint.

³⁷ Relevant provisions deleted by the *Agricultural Legislation Amendment and Repeal Act 1998* s. 21.

³⁸ Repealed by the *Western Australian Arts Council Repeal Act 1986*.

- ³⁹ This committee was not in existence at the date of this reprint.
- ⁴⁰ Repealed by the *Acts Amendment and Repeal (Post-Secondary Education) Act 1989*.
- ⁴¹ Expired 7 Jun 1991.
- ⁴² Repealed by the *Wheat Marketing Act 1984*, which was repealed by the *Wheat Marketing Act 1989* which was repealed by the *Acts Amendment and Repeal (Competition Policy) Act 2003*.
- ⁴³ Expired 31 Oct 1984.
- ⁴⁴ Relevant provisions deleted by the *Acts Amendment (Conservation and Land Management) Act 1984*.
- ⁴⁵ Repealed by the *Youth, Sport and Recreation Repeal Act 1984*.
- ⁴⁶ The *Corruption and Crime Commission Act 2003* Sch. 3 was renumbered as Sch. 4 by the *Corruption and Crime Commission Amendment and Repeal Act 2003* s. 35(12) and the reference to it in s. 62 was amended by the *Corruption and Crime Commission Amendment and Repeal Act 2003* s. 35(13).
- ⁴⁷ The amendment in the *State Superannuation Amendment Act 2007* s. 79 is not included because it was repealed by the *State Superannuation Amendment Act 2011* s. 4 before the amendment purported to come into operation.
- ⁴⁸ Marginal notes in the *Constitution Acts Amendment Act 1899* referring to the legislation from which provisions were derived have been omitted from this reprint.
- ⁴⁹ The amendments in the *Sentencing Legislation Amendment and Repeal Act 1999* s. 26 are not included because it was deleted before it came into operation by the *Sentencing Legislation Amendment and Repeal Act 2003* s. 31.
- ⁵⁰ The *Conservation and Land Management Amendment Act 1991* s. 57 had not come into operation when it was deleted by the *Statutes (Repeals and Miscellaneous Amendments) Act 2009* s. 35(3).
- ⁵¹ The *Motor Vehicle Dealers Amendment Act 2003* s. 25 and 26 read as follows:

25. Transitional provision: membership of Board

The persons who were members of the Motor Vehicle Dealers Licensing Board immediately before the commencement of section 10 cease to hold office on that commencement.

26. Transitional provisions: change of title of Board

- (1) This section relates to the amendment made by section 9(1) which changes the title of the body established by section 7 of the *Motor Vehicle Dealers Act 1973* from the “Motor Vehicle Dealers Licensing Board” to the “Motor Vehicle Industry Board”.

- (2) The change of title of the body does not affect —
 - (a) its corporate identity;
 - (b) any right, power, or obligation of the body;
 - (c) any proceedings in progress; or
 - (d) anything previously done by, to or in respect of the body.
- (3) On and after the commencement of this Act a reference to the “Motor Vehicle Dealers Licensing Board” in any instrument (including any subsidiary legislation) is to be construed, unless the context otherwise requires, as if the reference had been amended to be a reference to the “Motor Vehicle Industry Board”.

⁵² The *State Administrative Tribunal (Conferral of Jurisdiction) Amendment and Repeal Act 2004* Pt. 5, the *State Administrative Tribunal Act 2004* s. 167 and 169, and the *State Administrative Tribunal Regulations 2004* r. 28 and 42 deal with certain transitional issues some of which may be relevant for this Act.

⁵³ The *Criminal Law Amendment (Simple Offences) Act 2004* s. 81(4) and (5) read as follows:

- (4) A person who is a member of the Legislative Assembly or the Legislative Council immediately before the commencement —
 - (a) does not become disqualified, on the commencement, for membership of the Legislative Assembly or the Legislative Council for the purposes of section 38(b) or 40(b) of the *Constitution Acts Amendment Act 1899*; and
 - (b) is not prevented from completing his or her current term as a member,by reason only of a conviction that occurred before the commencement.
- (5) In subsection (4) —
commencement means the commencement of this section.

⁵⁴ On the date as at which this compilation was prepared, the *Native Title (State Provisions) Act 1999* s. 7.3, which gives effect to Sch. 2, had not come into operation. It reads as follows:

7.3 Consequential amendments

Schedule 2 has effect.

Schedule 2 Div. 2 reads as follows:

Division 2 — Constitution Acts Amendment Act 1899

4. Schedule V amended

Schedule V Part 1 Division 1 to the *Constitution Acts Amendment Act 1899* is amended by inserting after the item relating to the Western Australian Gas Disputes Arbitrator —

“

Member of the Native Title Commission established
by the *Native Title (State Provisions) Act 1999*.

”.

⁵⁵ On the date as at which this compilation was prepared, the *Medicines and Poisons Act 2014* s. 183 had not come into operation. It reads as follows:

183. Constitution Acts Amendment Act 1899 amended

- (1) This section amends the *Constitution Acts Amendment Act 1899*.
- (2) In Schedule V Part 3 delete the item relating to The Poisons Advisory Committee.

⁵⁶ ~~Footnote no longer applicable.~~

⁵⁷⁵⁶ On the date as at which this compilation was prepared, the *Mental Health Legislation Amendment Act 2014* Pt. 4 Div. 4 Subdiv. 4 had not come into operation. It reads as follows:

Part 4 — Amendments to other Acts

Division 4 — Other Acts amended

Subdivision 4 — Constitution Acts Amendment Act 1899 amended

38. Act amended

This Subdivision amends the *Constitution Acts Amendment Act 1899*.

39. Schedule V Part 1 Division 1 amended

In Schedule V Part 1 Division 1 delete the item relating to the Mental Health Review Board and insert:

Member of the Mental Health Tribunal established by the *Mental Health Act 2014*.

40. Schedule V Part 3 amended

In Schedule V Part 3 delete the item relating to the Council of Official Visitors.

⁵⁷ On the date as at which this compilation was prepared, the *Conservation and Land Management Amendment Act 2015* s. 72 had not come into operation. It reads as follows:

72. Constitution Acts Amendment Act 1899 amended

(1) This section amends the *Constitution Acts Amendment Act 1899*.

(2) In Schedule V Part 3 delete the item relating to the Conservation Commission of Western Australia and insert:

The Conservation and Parks Commission established under the *Conservation and Land Management Act 1984*.